



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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Correction of errors of substance may be made only on the floor of the House with the permission of the Speaker. However, correction of typographical or grammatical errors which Members suggest for the Bound Volumes which will be compiled at the end of the Meeting may be clearly marked in the Daily Report, and the copy containing the corrections submitted at the Editor's Office, Parliament House, not later than four clear days after the publication of the Daily Report.

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

SECOND MEETING, 2025

Tuesday, 22nd July, 2025

*The House met at the Chamber of
Parliament at 11.06 a.m.*

[THE SPEAKER, RT HON
ALBAN SUMANA KINGSFORD
BAGBIN, IN THE CHAIR]

[PRAYERS]

The Speaker: Hon Members, I have received from the Electoral Commission (EC), the Writ of Election on the Ablekuma North 2024 Parliamentary Election, completed on Friday, 11th July, 2025. I shall proceed to read the communication.

ANNOUNCEMENT

**Communication from the Electoral
Commission**

The Speaker: The communication from the Electoral Commission is dated 14th July, 2025, and directed to the Clerk to Parliament. It reads:

Communication from the Electoral Commission



THE CLERK TO PARLIAMENT
PARLIAMENT HOUSE
ACCRA

14TH JULY, 2025

Dear Sir,

SUBMISSION OF WRIT OF ELECTION FOR ABLEKUMA NORTH
PARLIAMENTARY ELECTION HELD ON 7TH DECEMBER, 2004 AND 11TH JULY,
2025

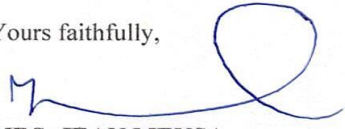
I bring you greetings from the Electoral Commission and trust that this letter finds you well.

Following the finalization of the collation of results for Ablekuma North Constituency Parliamentary Election, kindly find attached, the Writ of Election for the Parliamentary Election held on 7th December, 2004 and the Rerun Election held on 11th July, 2025.

Also attached is a schedule containing the name of the Candidate elected pursuant to Regulation 43 (2b) of the Public Election Regulations, 2020 C.I. 127.

Thank you

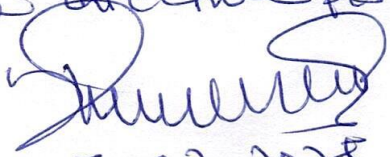
Yours faithfully,


MRS. JEAN MENSA
CHAIRPERSON

(3) Clerk
B. U. to be read
to the House & the
MP elect sworn in
on 17/7/25

② Rt Hon Speaker

For your kind attention
and further appropriate
directive pls


15-07-2025

Hon Members, I now proceed to read the Form of Writ of the Public Elections Regulations, 2020, (C.I.127)

Form One A, regulation 4(2), Writ of Election.

11.16 a.m.



ELECTORAL COMMISSION
GHANA

**FORM OF WRIT
PUBLIC ELECTIONS REGULATIONS, 2020 (C.I 127)**

FORM ONE A

(regulation 4 (2))

WRIT OF ELECTION

TO THE RETURNING OFFICER FOR THE ABLEKUMA
NORTH.....CONSTITUENCY

WHEREAS elections are to be held for the election of Member of Parliament;

WHEREAS there exists a vacancy in the Membership of Parliament for the ABLEKUMA NORTH.....Constituency

NOW THEREFORE I do hereby command you that you do cause the election of a Member of the said Parliament to be held according to law for the said Constituency and that you do certify on this Writ the name of the person elected AND

I DO HEREBY DIRECT that the nomination shall take place from the 9TH.....day of SEPTEMBER.....

to the 13TH.....day of SEPT. 2024 at EC OFFICE ABLEKUMA NORTH

and that the Poll shall be taken, if necessary, on the 7TH day of DEC. 2024

Chairperson, Electoral Commission

[P.T.O.]

SUMMARY OF FORM 1(B)

ABLEKUMA NORTH PARLIAMENTARY ELECTION, 2024/2025 ELECTED CANDIDATE

REGION: GREATER ACCRA

S/NO	NAME OF CANDIDATE	PARTY AFFILIATION	SEX: M/F	CONTACT NUMBER
1	EWURABENA AUBYNN	NDC	F	

The Speaker: The Form One B under Regulation 43(1) (g) certificate to be endorsed on the Writ. It reads: ‘I hereby certify that the Member elected for the Ablekuma North Constituency in pursuance of the Writ is Ewurabena Aubynn. The number of votes cast in respect of each of the candidates at the election is as follows:

1. Nana Akua Owusu Afriyie, votes obtained, 33,881;
2. Ewurabena Aubynn, votes obtained 34,090.

The document is dated 11th July, 2025, and signed by the Retaining Officer.

Hon Members, the House is now blessed with the final Member, a female increasing the number to 41 female Members in the House —*[Hear! Hear!]*—If this is not a blessing, what else is? I saw some of you taking her telephone number—*[Laughter]*—Hon Members, she is not in the market, so, please, do not attempt.

Hon Members, pursuant—

Yes, Minority Chief Whip?

Mr Frank Annoh-Dompreh: Mr Speaker, we in the Minority want to make a quick comment before the Member-

elect is sworn in and I seek your indulgence to do this with the greatest of respect, before the Member-elect is sworn in, if you may.

The Speaker: Well, I do not know the nature of the comments, so it is very difficult for me to take a decision in this matter, but we want to hear what it is and then I can take a decision.

Majority Leader, any—

Mr Mahama Ayariga: Mr Speaker, we have never done this before. Mr Speaker, if he had either an urgent public matter or a matter of a personal nature or anything, our Rules are very clear: he should have drawn your attention at Conclave, discussed the subject, and got an indication from you. It will be a surprise to all of us and I do not think that at this stage this Side of the House wants to support that move.

Mr Speaker, I think that we should swear her in and after that, then whatever comments Leadership may make, you can indulge us to make them. But to say that your exercise of your function should be arrested, so that he will make observations—Are the observations of a constitutional nature? Are there legal objections that he intends to raise? What is that? And I do not think that we even

want to hear what it is now. We are happy to hear it after the process is consummated.

So, I urge the Minority Chief Whip to hold his fire. If he could not arrest anything at the Electoral Commission and could not arrest it at the polling station, it is not here this morning that he would arrest anything.

So, I beg you, Mr Chief Whip of the Minority Side, please, hold your fire and let the Speaker swear in the young lady. I know you did not take her phone number; you can get it afterwards—*[Laughter]*—And then we can have the opportunity to make our normal ceremonial speeches and comments. So, I beg you; let us not drag this matter. Let us have the swearing-in and then we can move to the comments that both Sides of the House may make.

The Speaker: I hope you are going to respond to what he said and not your observation or comment.

Mr Annoh-Dompreh: Mr Speaker, I will forever respect you. The Leader also knows that Order 5 is not in ambiguity. It is clear and those powers of the Speaker cannot be challenged by the Majority Leader.

11.26 a.m.

Mr Speaker, I seek your leave to make a preliminary comment, then we can go ahead and do the swearing-in. Mr Speaker, I am at your discretion and I seek your blessing, as the father of this

House, to give me the opportunity to make a short comment.

The Speaker: Hon Members, the Minority Chief Whip, on behalf of the Minority has given notice that they have something to say. So, that will be said after I have sworn in the candidate. *[Hear! Hear!]*

The procedure we have is clear in the Standing Orders. If you go through Standing Order 67, you would see the order of Business in the House. Again, when you go through the guidelines for Speakers in handling the Business of the House, it is very clear. After reading the communication from the Electoral Commission, the Speaker is enjoined to invite the Member to be sworn-in; that is the procedure.

So, I am enjoined by the established procedure and the conventions to invite her to be sworn-in. After that, the House is given the opportunity to make comments and whatever comments you have, you are prepared to do that, but actions are not stated in the procedure.

Mr Annoh-Dompreh: Mr Speaker, I am very sorry and I say this with a lot of difficulty, that if that is the turn of event, then we in the Minority, for the records, cannot be part of the swearing-in. *[Uproar]*

[Some Hon Members of the Majority chanted “Away”]

Mr Annoh-Dompreh: We cannot be part of the swearing-in. We are walking out and this one is specific to the

swearing-in. We will engage in other Businesses.

[11.28 a.m. – Members of the Minority walked out of the Chamber.]

The Speaker: Hon Members, by our Constitution and the culture of democracy, you have both rights and freedoms, so it is within that context that they decided to walkout. So, this is a walkout; it is not a boycott. They are entitled to do what they have done. That does not prevent us from carrying on with the Business.

Once we have the quorum to continue with Business, we will continue with the Business. *[Hear! Hear!]* So, I will invite the Hon Member-elect for the Ablekuma North Constituency to proceed to the Speaker's dais to take the Oath of Allegiance and the Oath of a Member of Parliament. *[Hear! Hear!]*

OATHS

The Speaker: Hon Members, we will first have to know which denomination she belongs to. Are you swearing by the Bible, the cross, an affirmation, or by the Holy Quran?

Hon Member-elect for Ablekuma-North (Ms Ewurabena Aubynn): Mr Speaker, the Bible, please.

The Speaker: Hon Members, clearly, she has opted for the Bible.

[Ms Ewurabena Aubynn took and subscribed to the Oath of Allegiance and

Oath of a Member of Parliament.]
[Administered by the Rt Hon Speaker]

The Speaker: Hon Members, I will now proceed to hand over to her the tools of our work. *[Hear! Hear!]* So, I have the first one being the Constitution of the Republic of Ghana and the second, the Standing Orders of the Parliament of Ghana.

[The Rt Hon Speaker handed copies of the Constitution and the Standing Orders of Parliament to the Hon Member for Ablekuma North.]

11.35 a.m.

I take this opportunity to congratulate the Hon Member of Parliament for Ablekuma North Constituency for her election. Hon Member, you are welcome to the House. You have to proceed to append your signature to the oaths you have sworn and hand them over to the Clerk of Parliament.

Once again, I congratulate you. Being the youngest Member of Parliament—*[Hear! Hear!]*— I urge you, please be punctual, be ever-present in Parliament, be calm, listen more, learn from your Colleagues, but please, read everything, not only the Constitution and the Standing Orders. Read everything, because you are now the hope of the people in the Constituency. They are looking up to you to do something to improve their lives. It is a trust and this I pray you do not abuse. Four years is just a day. You will go back to them and they will assess you this time based on your performance. So please, do not be misled by any person. You fought the battle,

others only supported you, but it was your picture and name on the ballot box. And so, do not allow any person to change who you are. They voted for you, even though on a party ticket. There are many Members on that party in the Constituency, but they voted for you. Please commit yourself to them and be the woman that you are. You are the makers of the world. We will always rely on you to keep us going.

So once again, you are welcome and I congratulate you. You may now take your seat and you are now a fully-fledged Hon Member of Parliament.

You are welcome. *[Hear! Hear!]*

[Members of the Majority Caucus sang]

The Speaker: Hon Members, I will now give opportunity to the Leaders to have a word. Our Colleagues decided to waive that and I will allow the Majority Leader to say a word before I inform you of the guests we have with us today.

Yes, please?

Majority Leader (Mr Mahama Ayariga): Mr Speaker, I want to nominate somebody to speak on behalf of the Minority. People are offering to speak on behalf of the Minority.

The Speaker: Majority Leader, you are out of order. *[Laughter]*

Mr Ayariga: Mr Speaker, it has been a long-drawn battle, but at long last, the people of Ablekuma North now have a Member of Parliament and we are grateful to the Almighty God for making

this happen. But even more, we are grateful to the people of Ablekuma North for their resilience. They put up a fight starting from the night of 7th December, 2024, when the election results were being put together. They have been fighting since 7th December, 2024, and today, 22nd July, 2025, their aspirations are being met. Their desired choice to represent them in the Ninth Parliament has finally prevailed and today we see that the young lady has been sworn in.

Mr Speaker, I want to welcome Hon Aubynn Ewurabena. She has really fought a hard fight. She has demonstrated what women can do. Very few men can withstand the pressure that this young lady withstood and I want to commend her highly for weathering the storm, fighting relentlessly the way that she has done so that today will count.

With her addition to this House, the National Democratic Congress (NDC) has had its number increased by one more. Mr Speaker, I think the NDC now has two-thirds of the House—*[Hear! Hear!]*—Mr Speaker, let me repeat that the National Democratic Congress now, for the first time in a very long time, has two-thirds of this House—*[Hear! Hear!]*—Mr Speaker, with this number, we can do many good things for this country— *[Hear! Hear!]*—With this number, we can carry out significant constitutional reforms to make this country better. *[Hear! Hear!]*—Ghanaians today have given us all the numbers that we need to reset Ghana. *[Hear! Hear!]*—And indeed, Mr Speaker, I want to assure Ghanaians that what President John Dramani Mohammed said when he was being sworn in still stands, that the National Democratic Congress will not abuse the Majority given to it by Ghanaians. *[Hear! Hear!]*— We will use it wisely, we will use it properly, and we

will make sure that these numbers inure to the benefit of Ghanaians. *[Hear! Hear!]*

Mr Speaker, on that note, let me welcome our Sister, let me welcome our Colleague, and let me assure her that everybody on this Side of the Chamber is available to help her to find her feet in this House. Very soon, we will be expecting her maiden Statement in this House and we will be applauding her Statement. *[Hear! Hear!]*

Let me also congratulate and thank the Leadership of the Party in Ablekuma North. I see them still offering their full support and backing to our candidate, now our Member of Parliament. We know that some portions of the fight took place in this Chamber and we have always been with them throughout the days of their fight and we still remain with you. She is the last person to join us so far. We have lost one of our Members and there will soon be a by-election. That might be the last person to actually join this House. But so far, Hon Ewurabena Aubynn is the last person to join us, and I believe that given the energy I see in her, she will catch up and overtake some of us. *[Hear! Hear!]*

Mr Speaker, on that note, I thank you very much for exercising your constitutional duty to swear-in the Member of Parliament. You have always done what no person can do better.

Thank you very much. *[Hear! Hear!]*

11.45 a.m.

The Speaker: Hon Members, we have the lessons of the past, and I am sure you all recall that the first Parliament of the Fourth Republic had more than two-thirds majority in the House coming from the same National Democratic Congress

(NDC). *[Hear! Hear!]* In the Second Parliament, we had almost the same two-thirds. The New Patriotic Party (NPP) then had 61 members. The other parties, the People's National Convention (PNC) and the Convention People's Party (CPP) together had six, with an independent member. That took the parties not in government to a total of 67, and the NDC had 133. That was about two-thirds. In 1994, the then President, President Jerry John Rawlings, called us to a meeting and told us, like what the Majority Leader just referred to, that we should not use the overwhelming Majority to try to bully or stifle the Minority from having their say on the floor of Parliament.

You, when you are given this mandate, must act as the father and mother of the nation. So, you must have the patience and tolerance to listen to the other Side. I hope and pray that this exhortation from both Presidents, H.E. Jerry John Rawlings and H.E. John Dramani Mahama, will be taken by you.

We must allow our Colleagues in the Minority to have their say. Please, as Leaders, you must understand why lions do not live for long. The male lions in particular, do not live more than 10 years, and research has shown why. The female lions do not live more than 15 years, but the tortoise can live for hundreds of years. There is a good reason for that. I hope you would learn from that, and let us totally remove the issue of violence from our lives, particularly our political lives.

Not only in the elections, but also in the House, particularly when you are making submissions. Most of the words you use are not only intemperate, but even the manner in which they are uttered shows violence. So, this House now is full of shouting. That is not how we started the Fourth Republican Parliament. I am

just using this opportunity to touch your hearts. Let us tone down and continue to work together. What God has decreed, nobody can do anything about it. So please, I hope in the next by-election, we will have a more peaceful election than we had in Ablekuma North.

With this, once again, I congratulate our latest, our youngest and our newest Member of Parliament from Ablekuma North. You are welcome.

I will suspend Sitting for just five minutes and then, we will proceed with some essential, very urgent matters that should have been done long ago, which is hampering our participation in the proceedings of the Pan-African Parliament. We have to take that today.

So, Hon Members, Sitting is suspended for only five minutes.

11:51 a.m. — *Sitting suspended.*

12.08 p.m. — *Sitting resumed*

[THE SPEAKER IN THE CHAIR]

The Speaker: Hon Members, welcome back to the meeting.

Hon Members, today is the 35th Sitting of the Second Meeting of the Ninth Parliament of the Fourth Republic. We have with us a few visitors and what I have here is from two institutions.

We have 82 students from the Akenten Appiah-Menka University of Skills and Entrepreneurial Development. They are led by Dr Joseph Antwi Baafi. He is the Dean of Students Affairs. You all know the university is located in the Kwadaso Constituency. Please, they are

up there at the Public Gallery and they have, today, witnessed a unique process that does not happen often in the House. So, your choice of today was blessed by God and you have witnessed how Members are sworn into Parliament. You are most welcome.

Your university is quite a special one and that is what we lack in this country: skills and entrepreneurial competences and I think that is the focus of your university. So, kindly take advantage of it, develop yourself better than we are, so that we can actually deliver the goods. So, you are warmly welcome. Please, you can resume your seats.

[Students from Akenten Appiah-Menka University of Skills and Entrepreneurial Development were acknowledged]

The Speaker: We also have students from the Odupongkpehe AME Zion Basic 'B' School. They are 54 in number. They are being led by Mr Dodzi Nunekpeku. He is a teacher and this Basic School is located in the Awutu Senya East Constituency. They are also up at the Public Gallery and, on your behalf, again, I want to also warmly welcome them to this special session of Parliament. So, please, you may kindly resume your seats. It is good you started early. By the time you reach where we are now, you will be far better. So, please, keep on coming.

[Pupils from Odupongkpehe AME Zion Basic 'B' School were acknowledged]

The Speaker: Hon Members, I have been informed by Leadership that we should vary the Order of Business and go straight to Public Business, so that we

could take some outstanding Business today.

There are some other commitments, so I will be leaving you soon. So, with your kind indulgence, I move on to Commencement of Public Business and we will take the item numbered 15, Motion, by the Leaders, Hon Majority Leader, Hon Mahama Ayariga; and the Minority Leader, Hon Alexander Kwamena Afenyo-Markin.

Mr Mahama Ayariga: Mr Speaker, I was advised by their Clerk that, normally, there is really no Report of Leadership on the composition of the delegations. What is normally taken is just the Resolution because I asked them a couple of days ago where the Report was and they drew my attention that, normally, there is no Report and that they advertised the Resolution. So, it is a Resolution that is taken. So, Mr Speaker, they are here. I recall, last week, asking them where the Report was and that was what they told me. So, I am even surprised that, today, they have advertised the item numbered 15.

Mr Frank Annoh-Dompreh: Mr Speaker, I heard the Majority Leader, but I do not think it is the case. In times past, any time such a Motion is moved, a Report is generated. However, I agree with him that it is a matter that has been outstanding for a while and has to be dispensed with, of course, because of the implications. But I know for a fact that, normally, a Report is taken. But, Speaker, the interpretation of the Rules are in your hands. If it is the pleasure of the Speaker or the Chair that we should take the Motion without necessarily adopting a Report, I will not object to that.

Alhaji Habib Iddrisu: Mr Speaker, this is just to seek your guidance. I heard the variation of the Order of Business. But, Mr Speaker, we did not take the item numbered 5, Correction of *Votes and Proceedings* and I do not know whether that is also included in the variation.

The Speaker: I know. We will take it later.

Yes, Hon Members, it is a process that is being developed because of the nature of the Constitutive Acts of these Parliamentary Networks. Before, it was done by only Leadership and the Speaker. It was not even brought to the House. Later, because of the language of the Acts, we decided that it be a decision of the House, not Leaders and Speaker.

So, it was usually submitted to the House for the House to take the decision. Going through those Acts, the Constitutive Acts, you see that even there is a requirement for elections in some of them. Our country is not in a position to be conducting those elections, so that has been given to the institution of Parliament to always decide those who should represent the country in those Parliaments, both ECOWAS and Pan-African Parliaments.

So, you do not actually need to have a Report in writing.

12.18 p.m.

In moving the Motion, the attention of the House could be drawn to what engagements are taking place prior to the date of the moving of the Motion. I have, myself, been involved in these discussions and you know how far we have come, but because of a summit, it delayed. Those Parliaments are expecting our representation; that is not

forthcoming. So, please, I decided that this is an urgent matter and we should take it today.

So, please, you should move the Motion and give background information to the Members. It is not all reports that should be in writing. What you say is the Report you are presenting from Leadership. That is why it stands in the name of both the Majority and the Minority Leaders, so that you would know that we followed our African tradition and culture of decision-making. We always try to build consensus. That is our culture; that is our tradition. We do not usually go by what you call a majority decision. So, when you meet and you do not get a consensus, you adjourn to continue.

And when you adjourn, behind the scenes, the usual channels of communication take place. You lobby each other. Then you call another meeting where you sit and build consensus because the winner takes all will always lead to sour grapes; somebody will always be dissatisfied. That is what we used to do as a people, as a continent. Now, everything is by majority decision and if you do not build a consensus, then you proceed. If you cannot build consensus, yes, you now put it to a vote, but that is really alien. Our people have always reached over to build consensus in whatever they do. That is why even the arrangement of this House is in the horseshoe. It is for us to build consensus. It is not the Government and opposition.

So, please, you can move the Motion and whatever you say becomes a Report from the Leadership. The Minority will also add a voice, then we can resolve

because in taking the decision in this matter, it has to be in the form of a resolution. That is why it is so captured.

So, may we proceed, Majority Leader?

MOTION

Composition of the Membership of the Pan-African Parliament (PAP)

Majority Leader (Mr Mahama Ayariga) and Minority Leader (Osahen Alexander Kwamena Afenyo-Markin):
Mr Speaker, on that note, I beg to *move*:

That this honourable House adopts the Report of Leadership on the composition of the membership of the Pan-African Parliament.

Mr Speaker, as you know, we have had extensive deliberations on this matter and the Clerk to Parliament has been under enormous pressure from the Pan-African Parliament to have Ghana send our delegation. I am told by some Members of the delegation that, indeed, it is time to elect the Leadership of the Parliament and Ghana is in a position to be able to take some key positions as chair of some strategic committees of the Pan-African Parliament, but our absence is endangering our chances of being able to take the chair of these committees. So, I urge this House that we adopt the Report of Leadership on the matter.

Mr Speaker, I recall that after the deliberations, we concluded on a list. That list is made up of Hon Bernard Ahiafor who is the First Deputy Speaker, as Leader of the delegation; Hon Rockson-Nelson Etse

Kwami Dafeamekpor as the Chief Whip Member of the delegation, then Hon Collins Dauda, who has always been a Member of that delegation to remain a member of the delegation. We added Hon Zanetor Agyeman-Rawlings as a Member of the delegation. For the Minority Side, we have Hon Frank Annoh-Dompreh, the Minority Chief Whip; and an observer Member, that is Hon Patrick Yaw Boamah.

Mr Speaker, the status of observer is something that you introduced and authorised as a mechanism for resolving this long-drawn dispute about the composition of the membership. So, Mr Speaker, this is the membership that we are proposing as Leaders. It has been the subject of a lot of dispute and *et cetera*, but as the lawyers will say, litigation must come to an end at some point and Ghana must send a delegation to the Pan-African Parliament.

I urge Colleagues to allow us to adopt this Report of Leaders and take the resolution, so that we can have our representation at the Pan-African Parliament. I so move.

Thank you, Mr Speaker.

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, I beg to second the Motion moved by the Leader of the House and to make a few comments.

Indeed, this matter has lingered on for far too long and it is the tradition of this House that we have often, with ease, concluded on the same matter. I know the

Leader of the House, in his other world, was a delegate to the ECOWAS Parliament. In the Eighth Parliament, I was fortunate to represent the Parliament of Ghana together with senior Colleague, Hon Collins Dauda; Hon Muntaka, and others. I can say without any fear of contradiction, Hon Collins Dauda is here, that the name of Ghana is a brand at the Pan-African Parliament.

I am reliably informed that the same happens at the ECOWAS Parliament. I am also reliably informed that His Excellency the President, was once a delegate to the Pan-African Parliament. So, we have chalked up good success at the Pan-African Parliament. We have been inundated with calls as to why we have still not been represented at the Pan-African Parliament. It is quite regrettable.

Mr Speaker, not to belabour the point, it is gratifying that we are bringing finality to the matter. It is good for our image and also, as the Leader said, there are possibilities of Ghana being represented at leadership, one way or the other, at the committee level and it is something that cannot be lost on us.

Mr Speaker, my Colleague, the Majority Chief Whip, and I have engaged you on this same matter and our call for it to be resolved, as soon as possible, in the collective interest of Parliament and for the image of our country. However, as an internal matter, we raised a concern which has lingered on for a long time. I want to plead, without elucidating further, by saying that we find an appropriate way to deal with this concern as was raised. I have every confidence in you, Mr Speaker, that you will be able to deal with

this matter in respect of our Colleague, Hon Patrick Yaw Boamah.

12.28 p.m.

So, without adding more I second the Motion and I urge the House to support the passage and the adoption of the consequent resolution.

Mr Speaker, I thank you.

Question Proposed

The Speaker: How many from each Side of the House? One from each Side of the House then we can move to the next Motion.

Yes, Hon Minister for Lands and Natural Resources.

Mr Emmanuel Armah-Kofi Buah (NDC — Ellembele): Mr Speaker, let me thank you for the opportunity and also thank you for treating this issue as an urgent matter that must be dealt with this morning. Mr Speaker, Ghana's role in the continent is very critical. We know Ghana's place as a pacesetter for Africa's continental unity and progress. So, it is very unfortunate that it is taking us a little too long for us to send our representatives to the Pan-African Parliament. I am very grateful to you and Leadership for going past the differences to make sure that we can send a delegation and I urge the delegation to go and represent Ghana as the Black Star of Africa, as the country that led sub-Saharan Africa to freedom and to go and really deal with critical issues that quite frankly, has been a stumbling block, to Africa's development.

We have critical issues to deal with; Africa's energy poverty, Africa's infrastructure deficits and the issues of youth unemployment cut across our continent. So, we have urgent issues to deal with; issues of health and I believe that the delegation who is going to Pan-Africa Parliament must understand that they are representing Ghana. Politicians will stop at the water's edge when they leave. They are going to carry the flag of Ghana united in the values of Ghana and represent us and make sure that we can move the vision that really drove the founding of this republic, that we can only be free when Africa is economically united and that is the value that we should go and move. Mr Speaker, I thank you.

Alhaji Habib Iddrisu (NPP — Tolon): Mr Speaker, thank you for the opportunity to also add my voice to the Motion before us.

Mr Speaker, as you rightly indicated, the Pan-African Parliament is a very important legislative arm of the African Union. Mr Speaker, it does not only promote good governance, it also brings dialogue between Pan-African countries with its headquarters in South Africa.

Mr Speaker, what is happening now is an indication as to how with your involvement, we can always build consensus as a House. I will only appeal to you that, even though the composition that the Majority Leader read is all right, the last part where one Member is being labelled as an Observer, if Mr Speaker could change that for him to be a member.

Mr Speaker, I have no doubts in the Members, from the First Deputy Speaker to the Majority and the Minority Chief Whips; Our most experienced Member of Parliament, Alhaji Collins Dauda, an eight-time Member of Parliament, our able Minority Whip, the daughter of the former President of the Republic, Dr Zanetor Agyeman-Rawlings, will make us proud.

Dr Zanetor Agyeman-Rawlings —
rose—

Alhaji Habib Iddrisu: Mr Speaker, when a Dagomba man mentions some names, if you understand that it is attributed to you, you can take it. Yesterday in Tamale, in part of our speeches, Dr Zanetor was there, when we learned that the former Minority Leader the Minister for Education is called “Aduna” because his mother could not call “Haruna”. So, it is allowed. So, if I cannot call “Zenota Agyeman-Rawlings”—[*Laughter*]—

The Speaker: Hon Deputy Minority Whip, once she is around and she is on her feet, maybe, it is important I give her an opportunity to teach us how to pronounce her name.

Yes, Hon Member.

Dr Zanetor Agyeman-Rawlings: Thank you, Mr Speaker. The name is “Zanetor”, “Za”, “the darkness”, “netor”, “the darkness must stop”. That is my name, “Zanetor”.

Thank you.

Alhaji Habib Iddrisu: Mr Speaker, I think I will hide under the daughter of the former President of the Republic. Mr Speaker, I want to thank you and the Majority Leader at least for adding her. She is very experienced. I was expecting to see her name as a Minister or a Deputy Minister. —[*Uproar*]— Mr Speaker, that is my expectation. But I know she will lift the flag of Ghana high at the Pan-African Parliament. I know the First Deputy Speaker will lift the flag of Ghana high. I am very convinced that the very experienced Minority Chief Whip — he has been at the Pan-African Parliament for the last four years, when he was the Majority Chief Whip and I am very convinced that he and Hon Collins Dauda will guide the Majority Chief Whip, who is now going to Pan-African Parliament the first time, very well. I will just advise him that when he goes there, he should not read too many laws.

Mr Speaker, I thank you for the opportunity.

The Speaker: Hon Members, I will proceed to put the question, since that is the position taken by the House. They say one from each Side of the House.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: We will now move to take the Resolution.

Yes, Majority Leader.

RESOLUTION**Composition of the Membership of the
Pan-African Parliament**

Majority Leader (Mr Mahama Ayariga): Mr Speaker, I beg to *move*;
WHEREAS

1. Under Article 4(1) of the Constitutive Act of the African Union, each Member State shall be represented in the Pan-African Parliament by five (5) Parliamentarians, at least one of whom shall be a woman;

2. Under Article 4(2) of the said Constitutive Act, the representation of each Parliament shall reflect the

- i. Hon Bernard Ahiafor.....Leader
- ii. Hon Rockson-Nelson Etse Kwami Dafeamekpor.....Member
- iii. Hon Collins Dauda.....Member
- iv. Hon Zanetor Agyeman-Rawlins.....Member
- v. Hon Frank Annoh-Dompreh.....Member
- vi. Hon Patrick Yaw Boamah.....Observer

Mr Speaker, I so move.

The Speaker: Any seconder?

Mr Annoh-Dompreh: Mr Speaker, I rise to second the Motion moved.

Question put and Motion agreed to.

diversity of political opinion in the National Parliament;

3. Under Article 5(1) of the said Constitutive Act, the Pan-African Parliamentarians shall be elected or designated by the respective National Parliaments of the Member States from among their Members.

NOW THEREFORE THIS
HONOURABLE HOUSE
HEREBY RESOLVES

That the representation of Members of Parliament of Ghana to the Pan-African Parliament be re-constituted as follows in accordance with the said articles 4(1), 4(2) and 5(1):

Resolved accordingly.

12.38 p.m.

The Speaker: Hon Members, I have a few things to say after we finish with the Motions numbered 17 and 18 on the

Order Paper. So, can we take the item numbered 17 now?

Mr Ayariga: Mr Speaker, the item numbered 17 is a Procedural Motion.

MOTION

Suspension of Standing Order 104 (1)

Majority Leader (Mr Mahama Ayariga): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104 (1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to *move* the Motion is given, the Motion for the adoption of the Report of Leadership on the composition of the Membership of the ECOWAS Parliament may be *moved* today.

- i. Mr George Kweku Ricketts-Hagan.....Leader
- ii. Mr Emmanuel Kwasi Bedzrah.....Member
- iii. Hajia Laadi Ayii Ayamba.....Member
- iv. Mr Eric Afful.....Member
- v. Mr Dominic Napare.....Member
- vi. Osahen Alexander Kwamena Afenyo-Markin.....Member
- vii. Mr Kwame Anyimadu-Antwi.....Member
- viii. Dr Bryan Acheampong.....Member
- ix. Ms Millicent Yeboah Amankwah.....Observer

Mr Speaker, there is still an issue with this composition, and the issue stems from the fact that the ECOWAS Parliament has some very firm position on the membership of female members of the delegation. The delegation must have 30 per cent of the members being women. They do not compromise on that, so there

The Speaker: Any seconder?

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

The Speaker: Hon Members, we move to the item numbered 18 on the Order Paper.

Mr Ayariga: Mr Speaker, I think the constitution of our delegation to the ECOWAS Parliament has also gone along the same tortuous route that the composition of the Pan-African Parliament delegation went through. A lot of negotiations went into constituting this delegation.

Mr Speaker, the composition that is captured in the Resolution is as follows. For the ECOWAS delegation, we have:

is no way we would send a delegation that does not have 30 per cent membership made up of women and ECOWAS Parliament will accept the delegation. They now have the Speaker being a woman and they have the First Deputy Speaker being a woman, and because of the female leadership, they are very firm

on the 30 per cent representation being women.

Mr Speaker, from our composition, indeed, we have only one person as a woman, that is Hajia Laadi Ayii Ayamba. We clearly do not meet the requirements of ECOWAS Parliament and they will not accept this delegation.

Mr Speaker, the position of this Parliament has always been to send the Deputy Leaders as members of the delegation. That has always been the tradition. The Deputy Leaders always go to the ECOWAS Parliament.

Mr Speaker, this Side is sending Mr George Kweku Ricketts-Hagan in his capacity as a Deputy Leader. The Minority Side also has a Deputy Leader and she is in the person of Ms Patricia Appiagyei. She is the Deputy Leader, and this House cannot deny her the opportunity to go to ECOWAS Parliament, especially, when it helps this House to cure the problem of sending female representation. The position of this House is that the Deputy Leaders will always go to the ECOWAS Parliament.

Mr Speaker, when it comes to moving the Resolution numbered 19 of this House, I shall move pursuant to our Standing Orders for the amendment of the composition of the delegation, so that Osahen Alexander Kwamena Afenyo-Markin is removed, and Ms Patricia Appiagyei is replaced as a member of the delegation that will be representing this Parliament at the ECOWAS Parliament.

Mr Speaker, again, this Side of the House will also seek an amendment that Dr Bryan Acheampong be moved to the status of an observer, and move Ms Millicent Yeboah Amankwah as a substantive member of the delegation.

Mr Speaker, this will give us three female members of the delegation so that Ghana will have three female members out of the total number of nine members that we are sending to the ECOWAS Parliament as the delegation of Ghana.

MOTION

Composition of Membership of the ECOWAS Parliament

Majority Leader (Mr Mahama Ayariga): Mr Speaker, with these few comments and this proposed amendment to the Report of Leadership, I beg to move:

That this House adopts the Report of Leadership on the composition of the membership of the ECOWAS Parliament subject to the amendments that I have indicated.

Mr Dominic Bingab Aduna Nitiwul (NPP — Bimbilla): Mr Speaker, in fact, for four years, I had the privilege to be at the Pan-African Parliament with the current Minister for the Interior. This is the first time in a while that Leadership of Parliament are coming to us without consensus on what to do. I would urge Leadership to hold on to this Motion, go behind the scenes, resolve whatever differences they have and bring the Motion back to us.

Mr Speaker, we are not going to ECOWAS or Pan-African Parliament as any Majority or Minority. We are going as the Parliament of the Republic of Ghana.

12.48 p.m.

Mr Speaker, just as I agree with him that ECOWAS has strong and rigid percentages for women and men, it is equally true that we have an understanding and a convention here as to the percentages based on the numbers in Parliament. If you takeout Bryan Acheampong or whoever he wants to take out and bring somebody, this House will not meet the percentage that we have and he knows it.

Secondly, Mr Speaker, I think that the Leadership should not be moving Motions and asking the House to take decisions that they should take. I know it is the decision of the House to do so, but it is not for Parliament to foist the decision of the Majority on the Minority regarding our representation because they have the numbers. Our Side, at least, should be given the right to choose who will go.

Mr Speaker, if our attention has been drawn to an obvious fact and the Leaders sit behind the scenes, they should be able to resolve this matter. But to say that Parliament should vote for the first time, we would set a precedent that, tomorrow, will not be able to sustain. Because it is possible that, tomorrow, we bring names and because a Caucus has majority, they will move the Motion and remove every one of them and change them for us. Just

8 years ago, this Side of the House had 169 Members of Parliament and that is not how we exercised that majority—*[Interruption]*—No, that is not how we exercised it.

So, I will urge the Majority Leader to stand down on this Motion; do negotiations on the points he has raised, which are very legitimate and then tomorrow or even today, they can bring an amendment to it or an Order Paper *Addendum* for Parliament to take it; we can take it today. But to be moving this on the Floor, I think it is not a good thing. They would be setting a precedent and confrontations that is not good for us.

These are very good and legitimate points he has made and I agree with him that ECOWAS will not accept a delegation that does not—It has happened before, Mr Speaker, and we had to change it here. We went and came back to change. So, I agree that ECOWAS will not accept a delegation that does not meet that threshold of 30 per cent for females. In fact, we should even be trying to do more; so, I accept it. But I oppose, with all my strength and with the experience here. What he is trying to do is not good and he knows it. Deep down in his heart, he knows what he is trying to do is not good. He should, please, step it down and go back, behind the scenes, negotiate, and let us agree to it. It will help all of us.

Secondly, as I stated, if we decide to take Bryan Acheampong out and leave two out of nine, it does not meet the threshold that we are supposed to have. In fact, for even the Pan-African Parliament, that we have five, if we calculate, we are

supposed to be having 1.6 persons. The moment we cross the 0.5, it should have been two instead of one. But we did not argue. It is supposed to be 1.6 people for us here—*[Interruption]*—Yes, we do not have a half person. The moment you cross 0.5, then you move towards the two instead of coming back to one, but we agreed with him. So, why is he doing what he is trying to do? Is it because today they think have the numbers? It is wrong. Tomorrow, we may not be here: they may not be here and I may not be here. But he would have set a precedent that will not be good for us.

So, Mr Speaker, I want to urge you—You have over 32 years of experience in this House. You were first a Minority Leader, then a Majority Leader and you came back to being a Majority Leader. I want to urge that you prevail on the Leaders to step down this Motion, consult widely, resolve the matters behind the scenes and come back and present to us so that we go back to the ECOWAS Parliament and Pan-African Parliament with a united force.

I am urging the Majority Leader not to go on the route he is going; please, he should not go on that route. He should step it down; we can resolve this matter today and come back and resolve this. We like all the people; they are our Friends and Brothers. But what he is doing is not good and I think that he should not do that. He should step it down and please—It is not about the Majority Leader. He should step it down and, please, come back. He may have the numbers, but the route he is going on is not a good route.

I thank you, Mr Speaker.

The Speaker: Hon Members, please, I am not prepared to open up this matter again to this debate. We have been along this for the whole of this Meeting and time is not on our side again. The decision will have to be taken today and I am going to guide the House as to the decision to be taken. I am very careful about the choice of words. I said I am going to guide the House. We have gone a long way. Hon Members, please, may I have your attention?

Ghana is so fortunate to be the centre of the world. Not only are we the centre of the world, but we have also led our continent in so many ways; some have been mentioned. Please, listen, so that we can take a decision that is in the interest of the nation. We go as a delegation of the nation and not of parties. Please, we have evolved this system, but these bodies are still in transition. We do not actually go by the exact provisions of the Constitutive Acts, so the authority delegated to the House, by the country, is what we exercise here. If you go through the Acts, you will see that they even call for elections in the countries to elect the representatives. That has not been possible in our countries because of the financial constraints and the weakness of our democratic institutions and systems.

So, they decided that the Parliament should always take the decision and when you go, you go as a delegation of the country. I have been part of the people who have fashioned out these processes and one of the critical issues I took at that time was what one of you mentioned,

getting His Excellency the President to be a member of the Pan-African Parliament.

You are going to a continental platform and that is an opportunity for you to build up on your leadership to transcend beyond Ghana to the continental and global levels. That was the reason I used to get His Excellency to be a member of the Pan-African Parliament to build up for this position he is in now. So, it is not something that we give to you to go and joke and that is why, throughout, I have intervened. I am now talking to the larger body because I already did with the Leadership and for all this while, we have not been able to get the Leadership to build consensus on it. That is why we finally decided to bring it here. I have done all I could to guide in this matter.

Hon Members, it is Ghana that led the issue of education in Africa. I have been drawing your attention to these things, but you do not listen. It is our son who went around the whole of Africa to propagate the importance of education. So, it is not just the fact that we were the first in sub-Saharan Africa to gain independence. Even before that, we had this opportunity to lead Africa.

12.58 p.m.

So, in terms of education, Ghana was always ranked number one in Africa. Today, we are at number 10. Zimbabwe is leading; yes, in education. You know, the person who led Zimbabwe up to this stage to lead in education was produced here in Ghana.

The first President of the independent Rhodesia that became Zimbabwe was produced here in Ghana. Now, we have lost that position. We are recapturing that lost glory. You know, Ghana was referred to as “the Mecca of the Black Race”. Every black person in the world wanted to visit Ghana. We have lost that and we are trying to recapture it.

So, when we send you to represent us at these bodies, you represent the country Ghana and you work as one body. We have risen to positions there. Some of you have made very good records there and I can mention the names from both Sides of the political divide. They have really made names there and I get the reports.

In fact, I convinced Hon J. H. Mensah that we, leaders, should not be Members of these delegations because we are to be here to lead the House and not to be in ECOWAS or Pan-African Parliaments for years. If not, the first list that was submitted was made up of Majority and Minority Leaders and I said no; I opted out. He accepted my submissions and we decided to use other Members. Today, some of you Leaders have taken up the issue and sometimes we lose you. There are matters here, but the Leader is not around to lead; he is in ECOWAS or Pan-African Parliaments. Please, leadership is about sacrifice.

For all these months I have tried to mediate in this matter; yet, we cannot get a solution. I have been prevailed upon by some of the Leaders here that we use the formula of the composition of this House in the composition of all bodies of this House and I said that is wrong; we cannot

do that. We are not only governed by laws in Ghana; we are also governed by laws that are continental and global.

So, please, the guidance I want to give, again, in this matter—You have done the ECOWAS Parliament. There are a lot of things that come to me and I sometimes take decisions on your behalf. Depending on the nature of the subject matter, I usually make it the same number. You recall my earlier ruling here that when we listen to the right, we have to listen to the left. We did not use the formula in this to say that two or three people must speak on the right then one to the left; that is not democracy.

Your Constitution itself was built under the assumption of a majoritarian Government. Is that what we have been experiencing? No. Ghanaians do not agree. They feel that there must be a balance. So, you would realise that some provisions in the Constitution are crafted in such a way that they are looking for a majority rule, while some provisions have opened up even to independent presidents. If the person is an independent president, he has no party; where is the majority coming from? But he has to rule. So, we have to balance these things.

For the ECOWAS Parliament, I advised that in view of what was happening, because in ECOWAS—Sorry, I should start with the Pan-African Parliament. In the Pan-African Parliament, we have only five Members and we have the issue of gender. So, we debated it and I advised that we should add one Member to make it six. Then this issue about the formula came in and it was

a struggle, until I advised that we all know Hon Patrick Yaw Boamah; he is a very good Member of Parliament, so he should be given the opportunity. We negotiated until we agreed, from what I understood from the discussions, that he should be there as an observer. On the other Side, the discussion came to the extent that we agreed that Hon Millicent Yeboah Amankwah should be the observer.

But also, looking at the precedent and the rules in ECOWAS, we accepted that the Deputy Minority Leader should be a Member of our delegation to ECOWAS, not the Minority Leader. Please, this is the understanding. For me, I think that is a fair way for us to chart and be still respected in these bodies.

It is not only the Members. Always, Pan-African Parliament and ECOWAS Parliament will write to me to second our staff to work in those parliaments and our staff are always working there. By now, you all know the Pan-African Parliament clerk was here as our marshal and we trained him. They asked for his hand, he went there, they decided to take him on, they gave him a contract and now, what is he? The Secretary-General Clerk to that Pan-African Parliament. They rely on our staff always for guidance and support. So, why should they now be having problems in Ghana's representation? It is an anti-climax.

So, please, we are taking the decision today. The first decision has been taken. The second decision, I propose, is the matter that we have to maintain—She is my daughter, but these are not personal matters. She has to be the observer, Hon

Millicent Yeboah Amankwah, and Hon Patricia Appiagyei would have to replace Hon Osahen Alexander Kwamena Afenyo-Markin. That is the practice and that practice is a good practice. It is not broken, so we cannot mend it. Please, this is how we can build consensus on this matter. We are not going back to negotiate things again. We have to take a decision.

Some Hon Members —*rose*—

The Speaker: I will listen to you, do not worry. I will listen to the Minority Chief Whip who seconded; he has the opportunity to come back. There is something he may want to draw—Yes, so give him the opportunity. After that, I will listen to the Minister for the Interior who has also been with me for a long time and has been a Member of the bodies we are talking about. So, I will allow the Minority Chief Whip, before I come to the Majority. Please.

Mr Annoh-Dompreh: Mr Speaker, I would like to thank you.

1.08 p.m.

I tried to catch your attention because we stand in breach of Order 105. The Motion was moved and my senior Colleague was making deductions and contribution, so we need to come under Order 105 and get the Motion seconded before it could be considered by the House.

The Speaker: I totally agree with you, but when he stood up, the impression I got was he was going to make the

comments and second, but he did not second, so you now have the opportunity to do so.

Mr Annoh-Dompreh: I beg to second the Motion moved and with your leave make my views and contributions.

Mr Speaker, I am particularly saddened by the turn of event because Hon Agbodza, the Minister for Roads and Highways is not here but I see Hon Buah. In the Eighth Parliament, arguably the most difficult Parliament in terms of numbers in our body politic as a country, but we worked together. The Hon Minister for the Interior, Mr Muntaka is here, we worked together. Even in tense moments, we were able to navigate. You were then the Speaker and graciously you are the Speaker for this Parliament so you have a hindsight benefit of all that have happened.

I am sad about how things have happened and particularly, between the two Leaders. With respect, I am a Whip, I am not a Leader. I am in Leadership but I am just a Whip. These are the two arrow figures. Mr Speaker, I am third in command. These two people have to work together. Mr Speaker, with respect to Majority Leader, they have to work together.

From where I sit, the last time at Conclave, I was drawing the Clerk's, the Chief Administrator's attention that they he should engage the Speaker and the Speaker is very good at these matters. We can bridge the gaps. It is giving up on the institution Parliament. We can do our politics on the Floor, yes, but there should

be some lines that we should not cross. We should not cross some lines. Why should we be composing delegation on the Floor and it happens that we have to take out the Minority Leader's name? It is not right; it is inappropriate — totally inappropriate.

Mr Speaker, I know how worried and passionate you have been about this matter. I only want to plead. Mr Speaker, you are the father of this institution, I want us to err on the side of caution and make a dignified retreat in these matters. And the dignified retreat should be that we should resolve this matter at Conclave.

Mr Speaker, I have confidence that the last opportunity given, we should be able to resolve this matter. Mr Speaker, I plead with you. In all matters you have always counselled us that we should give peace a chance; we should reach out, negotiate, and build consensus. I hear some of my Colleagues say we should vote. Please, you are in the Majority, there are times that your Leadership has reached out to us for one reason or the other. When they are talking about votes, they should be careful. One day, the gun may turn against them.

Mr Speaker, just to corroborate what my senior Colleague, Hon Nitiwul said, we can go ahead and vote but I am just pleading that we should engage and not to expose the Leaders. These are the Leaders of this institution; we should not unnecessarily expose them so that we can deal with this matter.

I am confident that, given the last chance, we should be able to deal with this matter once and for all.

Mr Speaker, thank you.

The Speaker: Please, let me listen to the Minister for the Interior.

Alhaji Mohammed-Mubarak Muntaka: Mr Speaker, thank you very much.

Mr Speaker, I am really very saddened by the turn of events. Mr Speaker, when we fail to allow history to guide us, we run into the challenges that we are running into now and if we are not careful, we will be setting precedents and even more difficulties ahead of us into the future of this Parliament. Mr Speaker, I am saying this because we are privileged and sometimes, we do not know how privileged we are to still have you and the likes of Hon Collins Dauda in this Chamber. If I look at both Sides of this House and I see that our peers are left with Hon Nitiwul, Hon Eric Opoku, Hon Mahama Ayariga, Hon Rashid Pelpuo, Hon Haruna Iddrisu and my good self, I get worried. When we take entrenched position and likes of you and many of us are advising and people still take entrenched positions, I do not know what they want to do to the institution of Parliament.

Mr Speaker, let me say with all humility, I have had a great privilege of serving in Leadership of this House. I served under you as Chief Whip and I am proud to say that I am one of the longest serving Chief Whip this country has ever

produced. Meaning that I have done this thing again and again. I have done it for over a decade. When we advise and people refuse to take it and still remain entrenched, they are not only likely to destroy themselves but they are destroying this House.

Mr Speaker, you would recollect that composition of Pan-African Parliament and ECOWAS Parliament have always had the Deputy Leaders and the Chief Whips in them. I am yet to be corrected to see a composition of ECOWAS and Pan-Africa Parliament that had any Leader on it because there are a lot of other things Leaders enjoy as privilege in this House that even the rest of us who serve with them in Leadership do not want to talk about them for others to hear because it comes with some other privileges. Obviously, it is right. Because they carry the weight of the rest of us. They give in a lot so that others will have space. That is why over the years—for 20 years, you can go and check the records of this House, no Leader on both Majority or Minority Sides has served in any ECOWAS or Pan-African Parliament. We are capitalising on our knowledge of the ECOWAS and Pan-African Parliament to make it difficult for this House. Because, in the case of ECOWAS Parliament, if a Member is elected, even if his Parliament does not send him and he still insists he wants to be a Member, the ECOWAS Parliament will support him. We have a clear example when a former Whip in this House from our Colleagues opposite decided to defy Leadership, and when he went there, interestingly, the Minority Leader today who is taking an entrenched position was

the one who was disadvantaged. I thought that, if for nothing, he should learn from the history that being and taking an entrenched position will come and harm him one day. But unfortunately, he is the one who is today making it difficult for the House, because I have had privilege to talk to him that sometimes you never know the opportunity that exists somewhere until you lose one. He may think that he has a lot of leverage in ECOWAS and therefore he does not want to lose it, but he has no idea what other things are there for him.

Mr Speaker, having given this general background, I would want to make a suggestion. What I know is that we can vote and change the Minority Leader from the list. Mr Speaker, but as you and I know, based on the rules in ECOWAS, if he travels to Abuja, they will go and embarrass the country and they will still insist.

1.18 p.m.

Depending on who the Speaker is, we will still say that, look, once he has not lost his seat, he will be kept, unless we are going to do extraordinary work, protocol-wise to be able to correct that. Other than that, they will take this fight to the ECOWAS chamber and go and embarrass us. It has happened before.

Mr Speaker, my suggestion is that — Fortunately, the Rt Hon Speaker is here. He has had the great privilege of serving as Minority Leader, Majority Leader, Deputy Speaker and Speaker; probably the second person to have served as the Speaker twice. He knows the privileges

that the Leaders have. I do not want to mention them here. But, Mr Speaker, if it becomes necessary, this House may have to vote and support you. If the Minority Leader insists he wants to go to ECOWAS, he must be stripped of all the other privileges that the Minority Leader is supposed to have. We are talking about Inter-Parliamentary Union (IPU), Commonwealth Parliamentary Association (CPA) —[*Uproar*]. It is because of these privileges that those Leaders do not serve on this. [*Uproar*]

Mr Speaker, my second plea to you and to our Colleagues on the opposite Side—I know how difficult this thing is, and I am not pretending not to know how difficult it is, especially for the Whips. Mr Speaker, it is better for us to make Hon Millicent Amankwah a substantive member and take one of the others, probably Bryan Acheampong, as the observer. [*Uproar*] The sad thing is that, if Hon Patrick Boamah is an observer in Pan-African Parliament, nobody in this Chamber, like Mr Speaker rightly said, would doubt his capabilities, knowledge and the experience. So being an observer does not really demean the person or make the person of less importance but we are looking at the way we put the country. Because Mr Speaker, we take eight core members, and in the core members, the only substantive female is one. When we get to ECOWAS Parliament, we will be denigrating the country. Because out of the eight, they expect to see at least two substantive women. So yes, if we are able to add Hon Patricia Appiagyei, that will be fine. But it would be excellent if we are able to put the three of them as substantive members.

Mr Speaker, there is an example. I will end very soon. My Colleague, the Minority Chief Whip, will recollect that in the Eighth Parliament, we had instances where we had first timers. But because of the gender balance, we were able to make the female first timers as members, while we dropped some senior Members. So, I want to urge that we try to get the Minority Leader to appreciate why he must be out for the Deputy Minority Leader to replace him. But Mr Speaker, if we vote and he insists to go to ECOWAS Parliament, my plea is that you will have to look at the privileges that the Minority Leader enjoys in this House, so that we can strip him of it, for him to keep the ECOWAS as he may want, if we are not able to remove him, even after our vote.

Mr Speaker, I agree with you that this decision must be taken now. Because all efforts, including mine last month, to convince him to do this, failed. I do not think saying that we should go back into Conclave will change anything. Let us take the decision now, and then let us deal with the consequences of the decision.

Thank you very much, Mr Speaker.
[*Hear! Hear!*]

The Speaker: Hon Members, please, I am happy that the Minister for the Interior has recounted some of my experiences. I insist, we are done with the first Motion, and we agreed that in spite of all the prowess of Hon Yaw Boamah, he should be an observer. It is the same way we have to agree, that my daughter, Hon Millicent Yeboah Amankwah has to be an observer. She has to be an observer

because she is the future and therefore, she has to be mentored for her to grow.

Hon Members, please. Hon Bryan Acheampong stands as a national figure and his membership will add some more value to our delegation in the ECOWAS Parliament, so he will be there as a member. Once the Minority Leader gives way to the Deputy Minority Leader, we would have the gender balance, so that issue will not rise again. The issue that is left for us to resolve is if he defies the decision of the House and goes there to still try to stand. I can assure you that that will be no problem for me. *[Hear! Hear!]* That will be no problem for me because I have reports on everybody as you attend those meetings. I have been leader for many years. I have never accepted to be a

member of ECOWAS Parliament or Pan-African Parliament. For the good reason that as a leader, you must create opportunities for your followers. I did and many of our members here have benefited from that. The former President, Nana Addo Dankwah Akufo-Addo was one of the beneficiaries of our leadership strategies here. So is the current president, H.E. John Dramani Mahama. So, please, what we do here is not for our personal benefits. It is for that of the nation. So, I will accept the amendment and urge you to vote according to that amendment. That the composition of Ghana's delegation to the Community Parliament of ECOWAS be made of the following:

- | | | |
|-------|--------------------------------------|----------|
| i. | Hon George Kweku Ricketts-Hagan..... | Leader |
| ii. | Hon Emmanuel Kwasi Bedzrah..... | Member |
| iii. | Hon Laadi Ayii Ayamba..... | Member |
| iv. | Hon Eric Afful..... | Member |
| v. | Hon Dominic Napare..... | Member |
| vi. | Hon Patricia Appiagyei..... | Member |
| vii. | Hon Kwame Anyimadu-Antwi..... | Member |
| viii. | Hon Bryan Acheampong..... | Member |
| ix. | Hon Millicent Yeboah Amankwah..... | Observer |

Please, I so advice, and I proceed to put the Question.

Hon Majority Leader?

Mr Ayariga: Thank you very much, Mr Speaker. This House has always accepted your guidance. So, once you have guided us, we have no objection. We will abide by your guidance. And we will

accept the current composition that you have presented.

Thank you, Mr Speaker.

1.28 p.m.

The Speaker: Hon Members, before I put the Question, there are two issues: one, when matters come before this House, they are for the House to take a

decision. No party decision from outside will prevail over the decision of the House. The last trump card that Leaders were using was that it is the position of a party. I am not, as the Speaker, bound by any party position. Please, if that had been the situation, we would have taken the concept that we are implementing of a Speaker not being a Member of Parliament. That concept is different from the others where a Speaker is a Member of Parliament.

There is good reason why we took that. I am not bound, so any party that has taken any decision somewhere—In fact, I crosscheck sometimes and it is really not true that it is the decision of the party. I am doing this openly because I want everybody to hear, including the parties and Ghanaians; that is why I am doing it. That is why I decline the wise counsel of the former Minister for Defence, Hon Dominic Nitiwul, that we take it back to Conclave because I wanted to go beyond this House for those outside to hear. That is why I am putting it here. If I cannot exert that authority, please, then Parliament will be a conduit and that is not what Parliament is meant to do.

Two, Hon Members, this is the last plea. If you look at our Standing Orders, particularly the one dealing with use of decent language and how we address each other, you know if you have to talk about a conduct of a Member or a judge, they are specified in the Standing Orders. You can only do it by a substantive Motion. You get up here and attack your colleague Member, sometimes, without any just cause.

I was shocked when I came to hear that a Leader got up on this Floor and attacked a Member who just got up to make a contribution and that went without any adverse reaction from the House. Please, we do not do that. It is not even permitted by our Rules, particularly the fairer side. There is good reason why we say ladies first. Please, do not allow that to be a practice in this House. It will not help any of you and it will not help the institution of Parliament and it will actually destroy our democracy.

Hon Members, please, read order 123(7), which says:

“The conduct of the Speaker, the Chief Justice, Members and Justice of the Superior Court of Judicature shall not be raised in Parliament, except upon a substantive Motion”.

Why? It is because you give the House the opportunity to take a decision. You cannot, on your own opinion or judgement, get up and attack a Colleague and say things that are baseless and have nothing to do with the Business on the Floor. That is scandalous.

Please, I read the *Official Report*. I am not talking about your body languages and the rest because that cannot be captured in the *Official Report*. I am not also talking about the noise, but what was captured in the *Official Report*. Please, do not let us continue that. Let us desist and I am listening to you because you are not whispering. You are talking to my hearing. We were all brought up well by our elders; let us continue that way.

Please, I am proceeding to put the Question. Those in favour—

Yes, please?

Mr Annoh-Dompreh: Mr Speaker, the Majority Leader made a comment and I thought I should make some observations. First of all, Mr Speaker, we thank you highly for your wisdom and how you have helped us to navigate in these matters. I also want to assure the House that, however unpalatable it may seem, we in the Minority would take it in good stride and the Minority Leader, Mr Speaker, will not engage in any conduct that will bring the name of Parliament into disrepute. That we want to assure the House and also to assure the House that we will abide by the decision of the House.

I thank you.

The Speaker: Hon Members, I will put the Question.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: Please, Hon Members, I urge you to work together as representatives of the country, not as representatives of a party in the ECOWAS Parliament and the Pan-African Parliament.

I thank you for your cooperation and the acceptance of my guidance.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, we have taken Motion 18. So, we have to now pass the consequential Resolution, which is the item numbered 19.

The Speaker: Hon Member, we went beyond the Motion and you even made amendment to the composition in your submission. So, you incorporated the Motion and the Resolution and my guidance also went into the Resolution. The Question I put is on the Resolution, which has been accepted and resolved. So, we cannot go back. We are masters of our own Rules. So, the Resolution has been taken and then we will proceed on to the other Business.

I will urge us to now go back.

Mr Ayariga: So, what I understand, Mr Speaker, to be saying is that the Resolution is, hereby, incorporated in the Motion that has just been taken, with the names specifically spelled out.

Thank you, Mr Speaker.

The Speaker: I have read it again with the names. So, it is so resolved.

Hon Members, we will now go back to the item numbered 5, so that we can take Correction of *Votes and Proceedings* and the Second Deputy Speaker will take the Chair because I have to go and represent the House at another function.

1.38 p.m.

The Speaker: Hon Members, the item numbered 5 on the Order Paper – Correction of *Votes and Proceedings* and

the *Official Report*. We would start with the Correction of *Votes and Proceedings* of Monday, 21st July—Yes, please?

Mr Ayariga: Mr Speaker, I do not intend to arrest the—*[Pause]*

Mr Speaker, yesterday, we had a difficulty. We needed to take the Motion adopting the Report of the Committee on Health on the passage of the Ghana Medical Trust Fund Bill, 2025. A question of quorum was raised and we had to adjourn last night. Indeed, because of the event in Tamale, we had sent about 57 Members of Parliament to Tamale, so we had challenges mobilising the numbers. We agreed that we were going to take that Motion this morning.

So, Mr Speaker, I will plead with you, as we have the numbers now, if we could take the Motion numbered 23, the Ghana Medical Trust Fund Bill, 2025 through a Second Reading. Mr Speaker, that is my appeal to you. I am not seeking to arrest the consideration of the *Votes and Proceedings*, but if we do not take it, it will be difficult to mobilise the numbers subsequently. So, I plead with you, if we can take the Motion numbered 23.

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulties, so you can put the Question on the Motion numbered 23.

The Speaker: Hon Members, the item numbered 23 on the Order Paper – Motion that the Ghana Medical Trust Fund Bill, 2025 be now read a Second time. I do not know why you did not amend the word “Trust”; why is it still

appearing? But when we go to the Consideration Stage, I am sure you will take care of it. So, we will take that Motion for the Second Reading, then, as we go on, it is the Second Deputy Speaker who will be presiding. He will continue the discussion with you.

So, let us take that. Yes. I will put the Question. Let me look at your numbers. Yes, you have the numbers.

BILL — SECOND READING

Ghana Medical Trust Fund Bill, 2025

(Moved on Monday, 21st July, 2025, by the Minister for Health, Mr Kwabena Mintah Akandoh, and seconded by the Hon Member for Adentan, Mr Mohammed Adamu Ramadan)

Question put and Motion agreed to.

Ghana Medical Trust Fund Bill, 2025 accordingly read a Second time.

Mr Ayariga: Mr Speaker, I know you want to leave, but I will still urge that we vary the order of Business and move to the item numbered 24, because there are only two clauses to be amended, but he can take the seat.

The Speaker: Hon Members, the Second Deputy Speaker to take the Chair.

1.42 p.m. — [MR SECOND DEPUTY SPEAKER, HON ANDREW ASIAMAHO AMOAKO, IN THE CHAIR]

Mr Annoh-Dompreh: Mr Speaker, the Majority Leader just made an application to the Chair for the item

numbered 24 to be taken. However, I want to advert his mind. Mr Speaker, yesterday, you gave a directive that the Minister for Finance must appear—*[Interruption]*—Yes, he must appear. I am aware you will be leaving the Chamber for—No, I want to notify him. I am putting him on notice.

Mr Speaker, we cannot compromise on the Committee of the Whole. It is very important. So, is it the agreement that we will do the advertised clauses under consideration and then we will revert to the Committee of the Whole? I want to get that understanding. Mr Speaker, I want that understanding established before we proceed.

Mr Second Deputy Speaker: I thought we did not say Committee of the Whole, we said Closed Sitting.

Mr Ayariga: Mr Speaker, I think that is a matter we will take up later, but for now, can we just take the item numbered 24 on the Order Paper, so that we can take these two clauses through the Consideration Stage.

Mr Annoh-Dompreh: Mr Speaker, I am not enthused by the words of the Majority Leader, when he says, it is a matter we can take later. No, it is important and I have made a suggestion to the House. We must establish that after the consideration of the advertised amendment, the next Business, without fail, is the Closed Sitting. He should accede to that, then we can proceed.

Mr Ayariga: Mr Speaker, I am not litigating it. I said that is not a difficult

matter. The Minister is not too far from us; he is a Member of this House. The Deputy is also a Member of this House. They are all here. They just stepped out because earlier, they had a matter before the Committee on Subsidiary Legislation. I ended the meeting, so that they will all come back, so that we can have the numbers. That is why I am saying this is not an issue at all.

Mr Speaker, can we take the item numbered 24?

Mr Second Deputy Speaker: Very well.

Leader, before we move to the item numbered 24, yesterday, we did not put the Question, so—Has it just been done? Very well.

So, now, we would turn to page 13, the item numbered 24 – Ghana Medical Trust Fund Bill, 2025 at the Consideration Stage.

BILL — CONSIDERATION STAGE

Ghana Medical Trust Fund Bill, 2025

Mr Second Deputy Speaker: Hon Members, I think we have only two advertised amendments to the Bill, but we will have to go through it clause by clause. So, we will start from clause 1 and the Table will help us through.

Clauses 1 and 2 ordered to stand part of the Bill.

Clause 3 — Sources of moneys for the Fund.

1.48 p.m.

Mr Isaac Boamah-Nyarko: Mr Speaker, clause 3, which is sources of moneys for the Fund, we have in 3(a) that 20 per cent of the total money allocated to the National Health Insurance Fund (NHIF).

Mr Speaker, I think the 20 per cent is on the high side, so I propose that the source of fund at (a) should be “not more than 10 per cent of the total money allocated to the NHIF”.

Mr Second Deputy Speaker: Very well, Hon Members, there is a proposed amendment that the 20 per cent should be 10 per cent.

Yes, Hon Member for Asante Akim Central?

Mr Kwame Anyimadu-Antwi: Mr Speaker, we need to do a balancing act, at the Second Reading of this Bill, we had discussed the sources of funding. We have read the Report that the Committee has suggested that the 20 per cent taken from the National Health Insurance Fund was too much but if we look through clause 3, this is the only substantive amount that is setting up this fund. So, to take away part of it would mean that we are collapsing the thing at birth. So I would suggest, and I would say that the Minister was not clear as to other sources of funding. In maintaining the 20 per cent, I would suggest, and I would want to amend what my Brother had said, that it must be;

“The sources of money for the fund are

(a) up to 20 per cent of total moneys allocated to the National Health Insurance Fund (NHIF)”.

So that if the Minister is able to consult Cabinet, and the 20 per cent is given, so be it. But if they have to adjust and come to 15 per cent, 19 per cent or 20 per cent, so be it but not beyond the 20 per cent. So, I would propose and amend what he has said, that it must be up to 20 per cent of the total moneys allocated to the National Health Insurance Fund.

Thank you, Mr Speaker.

Mr Isaac Adongo: Mr Speaker, my concern is that this Bill comes with a fiscal impact and that fiscal impact gives an envelope of resources that will make this policy implementable. So, if we decide to vary the sources of funding, what we are effectively saying is that we should go back and recalibrate the fiscal impact and that will mean that we need to scale back on most of the things that we want to do.

I will appeal to my Colleague that in order to assist Government implement this Bill properly, we need to stay with up to 20 per cent and not more. So that Government is able to meet the target that it has set for itself and to get the people of Ghana to benefit adequately from the implementation of the policy.

Mr Second Deputy Speaker: So it means you are having counter amendment proposal to Mr Anyimadu-Antwi?

Mr Adongo: Yes, please.

Mr Second Deputy Speaker: Minister, can I listen to others before I come to you? Let me listen to the Chairman first.

Mr Nawaane: Mr Speaker, we are talking about a disease burden on the country that currently stands around 40 to 45 per cent and a mortality that is around 40 to 45 per cent. So, if we are removing just 20 per cent to solve a disease burden of about 40 per cent, then we only hope that this amount will be enough. So to ask that we should reduce it again is below the belt. I believe that we should stand by it and only hope that we can get some money somewhere to add to it.

Mr Speaker, thank you.

Mr Second Deputy Speaker: But did you listen to the proposal? You said up to 20 per cent. So it could still be 20 per cent but depending on —

Mr Nawaane: But it should not be less than that. That is what I am saying.

Mr Akandoh: Mr Speaker, with all respect, this was debated at length at the Committee level and I thought we had even crossed this point. Because this touches the core of the policy. So, with respect, I think there is absolutely nothing wrong with the rendition as it stands now. If we are not very careful and we get a Minister for Finance who will allocate 1 per cent, if we say “up to”, and 1 per cent is allocated, he falls within the law.

Mr Speaker, so with respect, I find absolutely nothing wrong with the rendition as it stands. It is a policy matter.

Nana Ayeh Agyei Baffour: Mr Speaker, this was the very reason we asked for a financial impact analysis. If they are saying that, given the rendition which has been suggested by Mr Anyimadu-Antwi and my Brother, Hon Member for Parliament for Effia, then there is the risk that the Minister for Finance may exercise a discretion that would be detrimental to the Fund.

Mr Speaker, clearly, it is obvious that we are pursuing this Bill with our eyes closed and pursuing something that we do not even know of.

Mr Speaker, what is the cost of this Fund? Section 100 of the Public Financial Management Act (PFMA), requires that we do not undertake this exercise without a clear financial direction.

Mr Speaker, what are we doing to ourselves? We all know that the NHIA is already struggling and we are saying that we should go for 20 per cent of it. Where is the impact —

Mr Second Deputy Speaker: Hon Member, what is your proposal?

Mr Agyei Baffour: Mr Speaker, I am supporting Hon Member for Effia that, we cannot rob Peter to pay Paul.

Dr Gideon Boako: Mr Speaker, it is important that as we consider this Bill, we pay so much attention to the financial impact. I heard the Chairman of the Finance Committee talk about the fact that there is a financial impact assessment on this Bill. I have not seen that —

1.58 p.m.

I am not sure if they have such a thing at the Committee level. Then, he makes the case that if Parliament decides to revise the 20 per cent to a lesser value, they would have to go back and recalibrate a financial impact assessment, which we have not seen yet.

But, Mr Speaker, for the funding sources for this, apart from clause 3(a), all the rest are quite nebulous. There is nothing concrete that gives indication that subclause (b) to (e), have the capacity to provide a cedi to fund this particular Fund. So, it means Government is solely going to rely on the National Health Insurance fund. Already, health insurance has huge problems in this country in terms of financing. What are they taking 20 per cent for? Why would they then not let this be situated within the health insurance operational remit, and then we move, other than creating another name, MahamaCares, just for public reasons.

Mr Speaker, I think we have to reduce the 20 per cent and look for proper and tangible sources of funding.

Mr Second Deputy Speaker: Let me give the last comment to the Ranking Member of the Committee.

Dr Nana Ayew Afriye: Mr Speaker, with your guidance, as far as the provision in clause 3(a) is concerned, the Minority abstained from it. Regardless of the position of my Colleagues, we would want to progress by taking due notice that we do not support moneys being taken from the NHIA, regardless that entire

provision which states that, “20 per cent of total moneys”, because even in the Act 852, we would have to go into the Act 852 to find out what is core and not core. That is why yesterday, I brought up Act 852, to say there are some inconsistencies and some difficulties. So, until those are done— Since we do not also have the clarity, our Side is abstaining and we would not comment on it because we do not support it. We are not—

Mr Second Deputy Speaker: Hon Members, are you of the view that we should not take any proposal from—

Dr Afriye: Mr Speaker, as far as clause 3(a) is concerned, we are opposed to any money being taken from the NHIA.

Mr Second Deputy Speaker: Hon Member for Effia, should we go with what the Ranking Member has said or I should put the Question?

Yes, Hon Member?

Mr Nkrumah: Mr Speaker, not to disagree with the Hon Ranking Member, but I just want to provide some further information to the House. If apart from our silence, the House goes ahead to approve as is, we will be breaching section 100 of the Public Financial Management Act, 2016.

Mr Speaker, with your leave, I read:

“Any legislation to be laid before Parliament or proposal submitted for the approval of Parliament shall be accompanied by a fiscal impact analysis stating the estimated effect

on revenues and expenditures for the financial year in which the legislation or proposal is expected to come into effect.”

Mr Speaker, there are about two or three levels of it that this House must consider, even as we stay silent. The first is the original fiscal impact of this provision that we are discussing. The second is the fact that when we take out 20 per cent of total moneys allocated to the National Health Insurance fund, that fund is now depleted by 20 per cent which they would already have in their medium-term framework, programmed for something.

Mr Speaker, it is also important for this House to understand from the health insurance authority, how they would close that gap of 20 per cent taken out of their medium-term programme. So, while the Hon Ranking Member says, and we agree, that we will not participate in a vote on this particular clause, we provide this information to guide the House that what we are doing is leaving a number of holes that are unplugged.

I thank you, Mr Speaker, for the opportunity.

Mr Second Deputy Speaker: Very well. So, I take it that this Side is abstaining from this particular clause. Let me put the Question. Hon Member for Effia, are you abandoning your proposal?

Mr Boamah-Nyarko: Mr Speaker, I side with the position of the Minority on this matter, that we should not take any money from the NHIA. So, the “up to 10

per cent” stands withdrawn and abandoned.

Mr Second Deputy Speaker: Very well. So, Hon Members, I put the Question.

Clause 3 to 5 ordered to stand part of the Bill.

Clause 6 — Board of Trustees

Mr Second Deputy Speaker: Hon Members, on clause 6, we have a proposed amendment.

Yes, Chairman of the Committee?

Dr Nawaane: Mr Speaker, there is a proposed amendment to the clause 6, and we want to further propose an amendment to that. We are suggesting that clause 6 (f) as it stands, should be divided into (i) and (ii). So, the new rendition should read:

“A health professional with

(i) not less than 10 years’ experience;

(ii) expertise in chronic disease, nominated by the Minister.”

I so move.

Mr Second Deputy Speaker: Yes, Hon Members, there is a further proposed amendment by the Chairman. Hon Chairman, can you take your amendment again? I mean, I did not get the rendition.

Dr Nawaane: All right. The original amendment in the Order Paper was to

insert “expertise in chronic diseases of” after “with”, but we are bringing in a further proposed amendment to this one. So, we now propose that the (f) should be divided into (i) and (ii). The new rendition now sounds like this:

“A health professional with

- (i) not less than 10 years’ experience;
- (ii) expertise in chronic disease, nominated by the Minister.”

Mr Second Deputy Speaker: Yes, Hon Member for Okaikwei Central?

2.08 p.m.

Mr Boamah: Mr Speaker, if he is proposing a new sub-clause, then he must make it very clear to the House. From what he is saying, I do not think it makes it tidy. It is a new sub-clause that he is proposing.

Mr Anyimadu-Antwi: Mr Speaker, I would want the Chairman to reconsider the proposal of the amendment. I call on the Chairman to look at clause 6(3) and I would have thought that clause 6(3) would have taken care of what he wants to insert because clause 6(3) says:

“The President shall, in appointing the members of the Board of Trustees under subsection (1), have regard to the integrity, knowledge, expertise and experience of the persons in matters relevant to the object of the Fund.”

So, I would have thought that this would have taken care of that. The whole thing talks about the Fund taking care of chronic diseases and in making the appointment, that must be taken into consideration. So, we do not have to—I think that should be enough and I urge the Chairman to withdraw the amendment if he finds favour with my proposal.

Mr Shaibu Mahama: Mr Speaker, I think that we should pick the first amendment, deal with it and then we can now come to senior Anyimadu. So, the initial amendment on the Order Paper has a further amendment, so, more or less, we are abandoning the initial amendment on the Order Paper.

Mr Speaker, the further amendment proposed by the Chairman—Indeed, the initial amendment convolutes the whole sentence. The essence is that he wants 10-year experience from a health professional and he also wants an expertise in chronic disease. But if you take the original rendition in the Bill, the 10 years seem to affect both the expertise and the experience. But we want to separate the two. The 10 years should affect only the experience; we have health professionals with 10 years’ experience. As for expertise, it could be 2 to 5 years and above; it is the reason we have subdivided it into (i) and (ii).

So, the new rendition will be:

- “(i) a health professional with not less than 10 years’ experience.
- (ii) expertise in chronic diseases, nominated by the Minister.”

Mr Speaker, once we are done with this, we can then look at the clause 3 that senior Anyimadu has mentioned, but I think that that clause 3 does not affect clause 6. It is just the three members to be nominated. The description in clause 3 affects only the three members to be nominated by the President.

Mr Second Deputy Speaker: Very well.

So, I think the rendition is clear.

Mr Dafeamekpor: Mr Speaker, let me advert their mind to—I do not think we are looking for expertise in the chronic diseases. But it is the treatment of chronic diseases. I think that that is intendment. So, if they can look at it—

Dr Afriye: With regards to expertise, those people who treat or manage—I will use the word, manage. In healthcare, we use management. So, management will start from knowledge in prevention, treatment and even the prognosis to tell the patient how it will go. So, when we confine ourselves—If we use “expertise”, we do not need to qualify it again with treatment—It is just all right.

Mr Second Deputy Speaker: Very well.

So, we will put the Question on the first proposed amendment.

Question put and amendment agreed to.

Mr Assafuah: Mr Speaker, please, with clause (6)(e), I think we are giving

so much power to the Minister. If we are talking about a pharmaceutical industry, why can we not allow the industry themselves to present their representative rather than to leave it for the Minister to also choose?

Mr Second Deputy Speaker: So, what is your proposal? What do you have?

Mr Assafuah: Same applies to the health sector as well. Unless, of course, there is a different health sector apart from the Ministry of Health itself because if we check clause (1)(a) and (1)(c)(i), the Ministry is also representing, if you like, by nominating someone to be nominated by the Minister and we have also repeated in its kind, as far as (e) is concerned, that the Minister is also going to nominate another person.

Mr Second Deputy Speaker: So, Vincent, what is your proposal?

Mr Assafuah: My proposal is that for the clause 6(e), we should allow the industry itself to nominate someone, not the Minister. The rendition should be that, “(ii)...the Pharmaceutical Society of Ghana”, And the second one, that is the (i), we should also allow it to stand, or if you like, the rendition should be “the health sector”. So, they themselves can also nominate someone for that one.

Prof Beyuo: Mr Speaker, it was discussed extensively at the Committee level. We have different groups within the pharmaceutical industry, so if you ask one section to nominate, it is going to bring chaos. We have Pharmaceutical

Manufacturers Association, the Pharmaceutical Society, Government Hospital Pharmacists Association and Importers Association. So, it must be somebody in the industry; anyone within the industry can be nominated. This is the reason why we do not want to specify and limit it to one of the groups. And it is a standard practice in the setting up of other boards. So, the Minister will consult widely and then nominate one person who is from the industry.

Mr Assafuah: Mr Speaker, respectfully, I think it can be rotational. If there are a number of agencies under the pharmaceutical—

Mr Second Deputy Speaker: Hon, that was why he said it is a standard practice of most of the industries.

Mr Assafuah: Mr Speaker, it is possible that the Minister can choose somebody from one agency for a four-year term or continuously by other Ministers who will come. So, you will find this Minister choosing this person from one agency and the other Minister will also choose another person from the same agency, leaving out the others. So, I am just saying that if that is the case, let us make it rotational. That should be specified.

Mr Second Deputy Speaker: If you like, then propose an amendment, so that we put a Question on it; then we move on—Then it means you are not even convinced yourself.

Prof Kingsley Nyarko: Mr Speaker, I would like to propose an amendment on clause 6(g):

“A legal practitioner with no less than ten years’ experience nominated by the Attorney-General and Minister for Justice and Minister for Justice.”

2.18 p.m.

I do not know why we are going for duration. Are we suggesting that a legal practitioner with 10 years’ experience is necessarily qualified to be part of the board? I think that we need to get a legal practitioner who has expertise in health-related issues. For me, that is better than to go for a duration or a period.

So, I was thinking that if we could amend this and make it, “a legal practitioner with expertise in health-related issues nominated by the Attorney-General and Minister for Justice”

Than to go for a duration of 10 years, 20 years, and all that.

Mr Second Deputy Speaker: Anyway, that is his proposal. Do we put the Question? No, if he stands by it, we have to put the Question.

Prof Nyarko: Yes, I stand by it because I feel that instead of going for duration, can we get a legal officer—With respect, the narration here is

“a legal practitioner with not less than 10 years’ experience nominated by the Attorney-General and Minister for Justice;”

This is a generic, legal practitioner. I am saying that we have to zero it down to a legal practitioner with expertise in that

field. That is better than to say a legal practitioner. So, is any legal practitioner qualified to be on the board? It would be more appropriate if we could get a legal practitioner with expertise in health issues.

Mr Second Deputy Speaker: Very well. Prof Beyuo, you are in the industry; let me hear you.

Prof Titus Kofi Beyuo: Mr Speaker, we discussed this. That legal practitioner is coming there to give legal opinion on issues that are being discussed. There are people on the board with the requisite expertise in health. So, we are not looking for someone to come in and give another expertise in health. As we can see, all the members of the board are carefully selected with the relevant expertise, so he may want to reconsider his amendment so that we can proceed.

Prof Nyarko: Mr Speaker, I am not enforcing my proposed amendment. We are all seeking to make this law a better one. I am saying that it makes more practical sense—

Mr Second Deputy Speaker: But Prof Nyarko, he has given reason that the person from the legal background is not necessarily coming to give medical or pharmaceutical advice. He is just coming to help them with the legal implications of some of these things.

Prof Nyarko: Mr Speaker, I would like you to put the Question on this proposed amendment.

Question put and amendment negatived.

Clause 6 as amended ordered to stand part of the Bill.

Clause 7 ordered to stand part of the Bill.

Mr Second Deputy Speaker: Hon Members, before I move to clause 8, kindly indulge me to acknowledge our children at the Public Gallery who came late. So, I introduce them as Peki Tsame E. P. Primary School. I hope I pronounced the name of the school well. They are led by Godwin Kwame Dogbe, who is the Headteacher. The school is located in the constituency of the Majority Chief Whip, South Dayi, and they are 106 in number.

Hon Majority Chief Whip, your students are here. I hope you will take good care of them.

Mr Dafeamekpor: Indeed, Mr Speaker, I will do so.

[Pupils of Peki Tsame E. P. Primary School were acknowledged.]

Mr Second Deputy Speaker: Very well. Thank you.

Clause 8 —Tenure of office of members of the Board of Trustees.

Is there any proposed amendment?

Dr Nawaane: Mr Speaker, there is no proposed amendment.

Mr Matthew Nyindam: Mr Speaker, I want us to look at this clause very well. Clause 8(1) reads,

“A member of the Board of Trustees shall hold office for a period of four years and is eligible for re-appointment for another term only.”

Mr Speaker, my issue is that, maybe, a member serves on the board for two years and decides to resign, then a new member is appointed to that board, but the government loses elections. What happens to that member who has just served for two terms? I want to find out from them.

Mr Second Deputy Speaker: Yes, Chairman of the Committee on Constitutional and Legal Affairs?

Mr S. Mahama: Mr Speaker, it is taken care of. It depends on whether the person is coming from an institution or is appointed by the president. If the person is coming from an institution, the institution will nominate another person in his stead and the person will carry for the unexpired terms; that is provided for in this Bill.

Mr Speaker, this is just to say that this is a very standard clause that we have here, so we should not belabour it.

Mr Nyindam: Mr Speaker, I just cited sub-clause 5 which seeks to remedy that situation where it reads:

“The President may by a letter addressed to a member revoke the appointment of that member.”

Mr Speaker, maybe, this one cures my fear.

Clause 8 ordered to stand part of the Bill.

Clause 9 — Meetings of members of the Board of Trustees.

Mr Second Deputy Speaker: Is there any proposed amendment, Chairman?

Dr Nawaane: No proposed amendment, Mr Speaker.

Mr Assafuah: Mr Speaker, clause 9(3) reads:

“The quorum at a meeting of the Board of Trustees is seven members including the Administrator.”

Mr Speaker, when we check the membership, we can clearly see that there are 13 members on the Board of Trustees and because of the practice in this House and other boards that I have seen, it would have been appropriate that the quorum would be reduced to maybe four, three or even five. Seven is too much, considering the number of persons who are supposed to sit on the board. Even in this House, one-third is supposed to form a quorum, so if the same one-third would be applied, I think that it would be—

Mr Second Deputy Speaker: Chairman, is there any reason for seven members to form a quorum?

Mr S. Mahama: Mr Speaker, for quorum, generally, we will say half the membership or a little above half and that is very standard.

2.28 p.m.

So, if the board is made up of 13 members, then we will be talking about six or seven, so seven is fine.

Clause 13, you will be talking about 6 or 7. So 7 is fine. It is half the membership or a little above the half.

Clause 9 and 10 ordered to stand part of the Bill.

Clause 11 — Establishment of committee.

Mr Second Deputy Speaker: Chairman, is there any proposed amendment?

Dr Nawaane: No, there is no proposed amendment.

Mr Second Deputy Speaker: Yes, I have seen Prof Nyarko on his feet.

Prof Kingsley Nyarko: Mr Speaker, I would like the Chairman to explain to me the difference between Resource Mobilisation and Fund-Raising Committee and Finance and Investment Committee in (3) (a) and (b). I think they are quite similar.

However, I would like to propose the introduction of (d), if it will find favour before the Chairman.

Hon Chairman, if we can have Monitoring and Evaluation Committee as part of the committees established. So that apart from the Technical Oversight

Committee which has a specific role, if we can have a committee that can monitor and evaluate the entire activities of the Trust or the Board.

Thank you, Mr Speaker.

Mr Second Deputy Speaker: Yes, Hon Shaib?

Mr Mahama: Resource Mobilisation and Fundraising — just like collections at a church or a mosque. The next is to how you invest that collection. So, they are two different things altogether.

Mr Second Deputy Speaker: Very well, is that alright? —

Prof Nyarko: I made a proposal.

Mr Second Deputy Speaker: What is your proposed amendment?

Prof Nyarko: Monitoring and Evaluation being part of the committee. At least to oversee the effective operation and assessment of the Fund.

Thank you.

Mr Second Deputy Speaker: Hon Members, there is a proposed amendment to clause 11 that Monitoring and Evaluation be part.

Prof Nyarko: Very well, Mr Speaker.

Question put and amendment negatived

Clause 11 to 13 ordered to stand part of the Bill.

Clause 14 — Secretariat of the Fund.

Mr Second Deputy Speaker: Chairman, is there any proposed amendment?

Dr Nawaane: No proposed amendment.

Mr Second Deputy Speaker: Yes, Hon Member for Kwadaso?

Prof Nyarko: Mr Speaker, I would like to propose if it would find favour before the Minister—

Mr Second Deputy Speaker: That is clause 14.

Prof Nyarko: Yes, please.

Mr Second Deputy Speaker: Well, let us hear you.

Prof Nyarko: If we can have the headquarters in Kumasi.

Thank you.

So, the Fund shall have a secretariat with the headquarters in Kumasi because we cannot have most of our headquarters in Accra. We need to spread them. So, I think Kumasi would be most appropriate, Mr Speaker.

Mr Second Deputy Speaker: Hon Members, there is a proposed amendment to have the headquarters in Kumasi.

Question put and amendment negatived

Clause 14 ordered to stand as part of the Bill.

Clause 15 — Appointment of Administrator.

Mr Second Deputy Speaker: Yes, Chairman, is there any proposed amendment?

Dr Nawaane: No proposed amendment.

Mr Second Deputy Speaker: Yes, Hon Member for Abuakwa South?

Nana Osei-Adjei: Mr Speaker, it is New Juaben North.

Mr Second Deputy Speaker: New Juaben North. I am sorry.

Mr Osei-Adjei: Mr Speaker, with the terms of the Administrator, I suggest that his term is also fixed.

Mr Second Deputy Speaker: I cannot hear you.

Mr Osei-Adjei: Fixed term.

Mr Second Deputy Speaker: His term?

Mr Osei-Adjei: Yes.

Mr Second Deputy Speaker: So, what do you propose? I am listening to you.

Mr Osei-Adjei: I propose three years.

Mr Second Deputy Speaker: Yes.

Three years?

Hon Anyimadu-Antwi, I saw you.

Mr Kwame Anyimadu-Antwi: Mr Speaker, I would always want to urge the Minister. Mr Speaker, early on, when we came to the “Membership of the Board”, we had some good qualifications. For instance, a medical officer of 10 years’ experience in communicable diseases. But when you look at the Administrator who would be the head of this Fund, there is nothing. There is no qualification whatsoever. And I would want the Minister to reconsider. I thought that given the specific qualification in the ones that we have discussed, we should have something even higher than what was stated for a board member.

But if a board member must have qualification of 10 years’ experience, and the person must be an expert in communicable diseases, and an Administrator who is the head, you leave it blank and you pick any other person to be the Head.

I urge the Minister to reconsider this, Mr Speaker. I pray, Mr Speaker, we have to enrich the Bill; not ayes and noes. Let us build consensus on this and get a good law for the nation.

Mr Second Deputy Speaker: Thank you very much. I think it is really a fundamental thing and the one who is going to be the Administrator — the day-to-day person should have a bit of knowledge to handle the matter.

2.38 p.m.

So, Hon Minister and the Chairman of the Committee, I think he has raised a fundamental issue. What do you want to say about it?

Mr Akandoh: Mr Speaker, I think we can grant our leaders the discretion to do the right thing at any given material time. So, at this point, I think that we should leave it as it stands.

Mr Second Deputy Speaker: No, but the House is making the Bill. We are making the law, so what is good for the country is what we are supposed to turn out.

Mr Akandoh: Mr Speaker, I agree with you. I am not saying the House does not have the right to make any amendment. But my opinion and position are that as it stands now, we grant the appointing authority the necessary discretion to appoint the appropriate person to head the Fund. This one, the person is going to head a Fund. The person must not necessarily be a medical doctor or expert in the field. It is a Fund management.

Mr Second Deputy Speaker: Very well.

Prof Beyuo?

Prof Titus Kofi Beyuo: Mr Speaker, to support the Hon Minister’s position, the person is being appointed in accordance with Article 195 of the Constitution and that will involve the Public Service Commission. Therefore, they will not appoint anybody arbitrarily who is not qualified to manage such an administrative position. So, I think we should let it stand as it is.

Thank you.

Mr Second Deputy Speaker: All right, very well.

Clause 15 to 20 ordered to stand part of the Bill.

Clause 21 — Expenses of the Fund

Mr Second Deputy Speaker: Hon Chairman, is there any proposed amendment?

Dr Nawaane: Mr Speaker, no proposed amendment.

Mr Second Deputy Speaker: Yes, Hon Member for Asante Akim Central?

Mr Anyimadu-Antwi: Mr Speaker,

“The expenses of the Fund, including salaries of employees of the Fund and administrative expenses of the Fund, shall be charged to the Fund.”

Mr Speaker, to start with, we only have 20 per cent of moneys accruing to the National Health Insurance. And if salaries and allowances are going to be paid from this Fund, then we must as well say that we do not have any money to start with. I do not have any proposal, but I urge upon the Hon Minister to look at this very well, because it looks like what they are trying to give birth to, they are collapsing it or strangling it at birth. I think they need to go through this and probably discuss with the Chairman and then they can come up with some proposed amendment at a Second Consideration Stage, Mr Speaker.

Thank you.

Mr Akandoh: Thank you, Mr Speaker. We have examples of such provisions in other Funds we have passed in this House. The point is that the 20 per cent of the National Health Insurance is not the only source of funding and it will not remain static. Probably, as we go along the line, there will be the need to review the sources of funding. I think that if we leave it this way, it will allow the Fund the flexibility to be able to recruit as and when possible and to be able to attract the right expertise without being restricted. So, I think that it must stand as it is.

Thank you.

Mr Baffour Awuah: Mr Speaker, again, the absence of a financial impact analysis makes it difficult for us to see our way clearly. Mr Speaker, the only source of funding, just as the Hon Anyimadu-Antwi has stated, is the 20 per cent from the National Health Insurance Authority Act. Mr Speaker, the available source of funding —

Mr Second Deputy Speaker: Hon Member, at clause 3, we saw so many sources of funding. Even though the focus has been the National Health Insurance, there are other established sources of funding. So, when the Hon Member says it is the only source of funding, I think he is misleading the House.

Mr Baffour Awuah: Very respectfully, that is not misleading. Mr Speaker, we are

looking at specificity. We are looking at what is available and not speculative. The rest of the sources of funding are what we are hoping to get. That is speculation. Mr Speaker, what is available is the 20 per cent that we all know of. That is concrete. We are saying that in the short to medium term, there is no financial impact analysis of how much of this 20 per cent will cover salaries and emoluments. We do not know how much of it will cover the recurrent administrative expenses of the Fund which is being created.

Mr Speaker, there is the risk of what is available covering the expenses. Mr Speaker, this makes the passage of this Act a serious danger.

Mr Second Deputy Speaker: So, Hon Member, I think you raised this issue when we were dealing with clause 3. I think we have gone past there. If at clause 21, you have a proposed amendment to it, you can do that and the House will look at it. Now, if you want to go on about the financial impact, then it means we will not move on. So, whatever proposed amendment you have to clause 21, let us have it and the House will consider it.

2.48 p.m.

Mr Ayariga: Mr Speaker, I want to draw the attention of the Hon Member that, anytime Mr Speaker is speaking, a Member is required to take his seat. But he is still on his feet when Mr Speaker is speaking and waiting for him to finish, so that he will banter with him and that is not the practice. When Mr Speaker speaks, a Member sits until he finishes. Even when

the Member rises again, the Member does not automatically respond. If he asks you a question, then the Member can automatically respond. But if the Member rises again, unless Mr Speaker decides that he is giving the Member an indication to continue speaking, he or she does not speak. He may decide that he has had enough of the Member and he wants another Member to speak. Let us keep to these basic Rules, so that the Speakers can manage the House.

Mr Second Deputy Speaker: So, Hon Member, my proposal to you was we have already dealt with the financial impact. We raised it when we were dealing with clause 3. If you want us to have it at clause 21, just make a proposal to amend the existing one, then the House will look at it and we move on.

Mr Baffour Awuah: Mr Speaker, I propose that a critical look is taken by the Minister. That is my proposal.

Mr Second Deputy Speaker: Probably, when we finish the entire Consideration Stage, we can look at if we are going to have a second look at it. But for now, we will move on.

So, clause 21—

Do you have something to say, Hon Sosu?

Mr Sosu: Mr Speaker, I have a little proposal for amendment just for the rendition. 21(1) reads:

“The expenses of the Fund, including salaries of employees of the Fund and

administrative expenses of the Fund, shall be a charge on the Fund”.

I think that the Fund has repeated itself just too many times in the rendition. So, my proposal is that it read, “The expenses of the Fund, including the salaries of employees and administrative expenses shall be a charge on the Fund”.

Mr Second Deputy Speaker: I hope the drafters are here. Yes, let me direct the drafters to take note of it and address it subsequently.

Clause 21 to 24 ordered to stand part of the Bill.

Clause 25 — Beneficiaries of the Fund

Mr Second Deputy Speaker: Hon Matthew Nyindam?

Mr Nyindam Thank you, Mr Speaker. Mr Speaker, I want to propose an amendment to clause 25 and I read:

“A person is eligible to benefit from this Fund if that person

(a) is a citizen who is insured under the Health Insurance Scheme...”.

Mr Speaker, I beg to differ and to say that this is a special scheme that is initiated to assist—And if you look at paragraph 3 of The Memorandum—I want to read:

“In the view of the above, Government seeks to introduce the Ghana Medical Trust Fund, also known as *Mahama Cares Initiative*,

as part of efforts to tackle the financial burden of chronic diseases such as cancer, kidney failure, cardiovascular diseases, stroke, and diabetes. These diseases collectively account for over forty per cent of all-age mortality in the country. The Fund aims to provide financial relief for patients and address gaps in specialist care, particularly in underserved regions”.

So, I think that it should be “citizen of Ghana”, whether the person is under the Health Insurance Scheme or the person is not under it. If we limit it to only people who have health insurance, it means that it would not serve the purpose and I would propose that the (a) should be, “is a citizen of Ghana”, and then we delete “who is insured under the Health Insurance Scheme”. That is my proposal, Mr Speaker.

Mr Second Deputy Speaker: Chairman, I hope he has made a very good and valid point.

Dr Nawaane: Mr Speaker, the policy of the Government of the day is in two folds. One is primary health care. It will soon come to this House, which would be free and a person can access it whether that person is a member of the Scheme or not. But this one, Mr Speaker, it is based on something in the form of an insurance scheme, so we expect that the National Health Insurance Scheme will take charge of the registration of the people and the person only apply it again and out of it, the person can access it. In other words, from that place, Scheme will enlist the people who are qualified, so that we do not repeat.

Mr Anyimadu-Antwi: Mr Speaker, I think the proposal that was made by my Colleague is apt. On the explanation that the Chairman gave, if we have to go by what he said, we must as well say that we must create a department of the National Health Insurance and then everybody will be at peace because, now, we have the Social Intervention Bill that is before this House, that is being considered. There are a lot of people who are vulnerable.

2.58 p.m.

Now, by way of policy, it came up. The NDC Government, when His Excellency John Mahama mounted the Presidency, said that everybody with these chronic diseases, dialysis and whatnot, will be catered for. He never said that when the person contributes to the National Health Insurance.

So, I think the amendment is apt and I persuade the Chairman to consider it.

Mr Second Deputy Speaker: Chairman, if what is put here is anything to go by, it means if somebody is not a contributor to the National Health Insurance Scheme, that person will never be a beneficiary. Is that the case? No, we have to enrich it.

Yes, my Brother, let him hear you.

Mr Alexander Roosevelt Hottordze: Mr Speaker, I think the reasoning behind that particular provision is that a considerable amount of the fund would be taken from the Health Insurance. And if

we are taking that money from the Health Insurance, we must find a means—

Mr Second Deputy Speaker: You are also saying the same thing.

Mr Hottordze: No. This is 20 per cent, so if we are taking it, there must be a way by which we would replenish the coffers of the Health Insurance before taking the money. They are going to spend a lot of money on the person and if the person is not contributing to resourcing the Health Insurance very well, it will not help us. That is the more reason it is important for a beneficiary to also contribute to the Health Insurance.

Mr Ricketts-Hagan: Mr Speaker, please, put the Question.

Mr Second Deputy Speaker: Should I put the Question? Personally, I am not in tune with this particular provision, that if I do not have money and I am not contributing to the National Health Insurance Scheme, this all-important scheme, I will not be a beneficiary. I do not think it is—That is the implication.

Mr Francis-Xavier Kojo Sosu: Mr Speaker, I think that it is important for us to understand the policy rationale behind why a person must be a citizen and a subscriber to the NHIS. The reason is that, we must understand that while all of us are amenable to these services that are available or this policy that the Government is enacting, it is important that, at the barest minimum, every citizen is encouraged to subscribe to the Health Insurance.

How do we do that? So, for example, there are many people who are registered with National Health Insurance and yet, do not have the capacity to take care of chronic ailments, and these are the people covered by this MahamaCares policy. So, Mr Speaker, at the barest minimum, from clause 3, if we are allocating 20 per cent of moneys to the National Health Insurance to this policy, it stands to reason that everyone who wants to benefit from this pot would also contribute.

So, Mr Speaker, in my view, it is a really good policy and I think the proposal should be allowed to stay as it is. So, if you can put the Question, it would be very good.

Mr Second Deputy Speaker: Very well. So, let me put the Question.

Hon Member, did you come with an amendment? All right, I am sorry. Let me take the amendment first, unless he has abandoned his amendment.

Mr Nyindam: I have not abandoned it; I want to re-emphasise it. So, my proposal is that

“A person is eligible to benefit from the Fund if that person
(a) is a citizen of Ghana”

It should stand just like this, then, we would *delete* “who is insured under the National Health Insurance Scheme”

Question put and amendment negatived.

Clause 25 ordered to stand part of the Bill.

Clause 26 — Application for support

Mr Second Deputy Speaker: Chairman, is there any proposed amendment?

Dr Nawaane: No advertised amendment.

Mr Ralph Poku-Adusei: Mr Speaker, I have carefully looked at clause 26(1) and it clearly provides that:

“A person who is eligible to benefit from the Fund under section 25 may apply to the Fund through a specialist medical practitioner.”

My emphasis is on “a specialist medical practitioner”.

Mr Speaker, then, when we come to clause 26(3), it provides a period within which the application may be considered. It provides for 14 days and in my estimation, with the 14 days, before one gets to the position where the medical practitioner would put in the application for the person, my assumption would be that then we are reaching the terminal point of whatever illness that may be.

Mr Speaker, I want to propose that instead of 14 days, we make it 7 days. My argument is that the application may be coming from a medical practitioner, so there will be enough justification for why one should be given this support. If there is all this evidence that supports one's position that they are actually entitled to this or otherwise, then I do not see why they should have the luxury of 14 days before the application will be considered. Within which time, Mr Speaker, if we are

not careful, the person may already be dead.

Mr Speaker, to that end, I want to propose that clause 26(3) should be within 7 days upon receipt of the application to consider the application, so that if it is granted, the person can be saved. If it is not, the person can seek support elsewhere to save a soul.

Mr Speaker, thank you very much.

Mr Second Deputy Speaker: Hon Members, let us be clear about this. This is the Bill. If anybody wants to propose any amendment to enrich the Bill, you first and foremost propose the amendment, then you give an explanation for it. At times, we go round and round. First, give the proposed amendment to whichever clause, then you explain for all of us to hear why you are making that decision.

Yes. So, is it on the same issue? Very well, let me hear you.

3.08.p.m.

Mr Titus Beyou: Mr Speaker, the reason we put 14 days here is because it is within 14 days. In emergency situations, we anticipate a same day decision. But some of the conditions are chronic illnesses. It takes time to make the decision. One requires some additional information, imaging reports, histology, biopsy reports, for the board to be able to come to a decision. It is the reason we are giving that 14-day period. But for real

emergencies, we expect even same day. So that is why we are saying “within 14 days”. Mr Speaker thank you very much,

Mr Boamah-Nyarko: Mr Speaker, I want to make an amendment.

Mr Second Deputy Speaker: Is it the same?

Mr Boamah-Nyarko: Yes, it is linked. Clause 26(1) and (3). So, it will eat into the three proposals.

Mr Second Deputy Speaker: Then let me put the Question on — or have you abandoned it based on the explanation he gave?

Mr Poku-Adusei: The explanation is untenable. Simply because we are looking at the application coming from a specialist. So, the assumption is that we have all the information to consider.

Mr Speaker, I would say that put the Question.

Mr Second Deputy Speaker: Hon Members, we need to move on. So that is his proposal. So, we will put his amendment on board. Hon Member, can you give us the rendition again?

Mr Poku-Adusei: Mr Speaker, I propose that clause 26 (3), should be changed to:

“The Funds shall, within seven days, after the receipt of an application under this session,

- (a) Approve the application and give notice in writing of the approval to the applicant, or;
- (b) Refuse the application and give notice in writing.

So, Hon Member, it means we are just to delete “14” and insert “7”.

Mr Boamah-Nyarko: Mr Speaker I have a difficulty with the entire application process under clause 26(1). So, my proposal, actually, is to delete or remove the entire 26. My reason is this. We are talking about beneficiaries of a fund and we have established the qualification for someone to benefit at clause 25. Once the person is confirmed as a citizen and suffers from a chronic disease, what is the basis of putting in an application and going through that process? Because under a normal health insurance system, where this is being borrowed from, if one goes to hospital and comes under the categories of beneficiaries for health service, whether it is malaria or any sickness, once the person is diagnosed and goes for the treatment, the benefit is automatic and it is billed against whoever is performing that service.

Why do we want to create a fund — the fund is here —

Mr Second Deputy Speaker: Hon Boamah-Nyarko is saying clause 26 in its entirety be deleted. Is that not the case?

Mr Boamah-Nyarko: Mr Speaker, I have not finished my justification. It has

to go down into the hearts and minds of my Colleagues on the other side.

Mr Speaker, the issue is that clause 25 has established the qualification or eligibility of beneficiary. The introduction of a new process under 26 where one needs to put in an application for a medical expert in which jurisdiction — in Ghana, how many health service providers have the specialist experts that we are talking about? So, for me, let clause 25 stay and even when the refusal and others are not done, — If the person does not work within the 14 days, what are the consequences? There is no consequence therein stated. So, my proposal, which is consistent with general health service provision in this country, is that clause 26 is needless, it is frivolous, it is bellicose and vexatious.

Mr Speaker, I so submit.

Mr Anyimadu-Antwi: Mr Speaker, I support the proposal by my Brother Mr Boamah-Nyarko and my justification is, especially when we had done clause 25 and the proposal was moved that the person must be a citizen, and we did not need to go to the extent of saying that the person must be insured under the National Health Insurance Scheme. Now there is qualification that the person is insured under the National Health Insurance Scheme and the person would still have to go through the procedure of making the application. I think that it would be neater if we do away with 26. I support the proposal.

Mr Second Deputy Speaker: Very, well. Let me listen to Prof Grace.

Prof Grace Anyensu-Danquah: Mr Speaker, I would like to make a comment on Mr Boamah-Nyarko's statement that we should remove clause 26.

Mr Speaker, clause 26, in terms of the application, is very important. I need to take this opportunity to explain the clause again. Here in Ghana, the referral pattern of our health system starts from a CHIPS compound. The next level is a health centre. From a health centre, one can go to a polyclinic, and from a polyclinic, it is a district hospital, and from the district hospital, we go up to the regional hospital.

Mr Speaker, for instance, if somebody has cancer in one of my CHPS compounds in Kojokrom, that person would be diagnosed in Kojokrom, and now further referred to, for instance, Effia Nkwanta, which is the regional hospital. In Effia Nkwanta, the doctor will have to do some tests, figure out, if it is breast cancer, what stage is the breast cancer, what type of breast cancer, what kind of procedure does the patient need? Does the patient need surgery, followed by chemotherapy and radiation therapy? It is all part of one treatment modality. So that is why we need a health practitioner to give the necessary documentation, the labs, the radiology, the proper diagnosis to access the Fund.

So, one needs to apply with this information, because otherwise how would the Fund managers know that one has breast cancer stage 3 and that the person needs surgery? How would the fund managers know that one's breast cancer is actually stage one and needs stereotactic biopsy? So that is why one

needs to apply, because once one applies, we can have the necessary information to see which part of the continuum, which part of the arsenal, which part of the armamentarium —[uproar]—do we put you into the spectrum. How do we fit the person into the spectrum? Because when we are talking about cancer, it is not one thing. When we are talking about high blood pressure or the complications of high blood pressure, it is not one area. When we are talking about diabetes, maybe the person has been amputated, maybe the person has had kidney failure, so it is the continuum and where we plug somebody. Mr Speaker, that is why we need that application because the application will be helpful to the fund managers.

Mr Second Deputy Speaker: Prof Grace, thank you.

Mr Adongo, are you going to speak on the same issue?

Mr Adongo: Yes, on the same issue.

Mr Second Deputy Speaker: I am just going to put the Question, so that you move it on. So, come.
3.18 p.m.

Mr Matthew Nyindam: Mr Speaker, this is a Bill that is before the House and we are all entitled to make inputs to better the Bill, so that tomorrow, when it gets out there, it benefits the people. Mr Speaker, clause 26 is riding on the back of clause 25. Clause 26 reads:

“A person who is eligible to benefit from the Fund under section 25...”,

It has been established that the person is going to benefit under clause 25. We are creating room for people to be disqualified and if we look at clause 29, although we have not got to clause 29, there is a room there that somebody can be denied. If we look at clause 29(3)(b), “Refusal of Application”. Meanwhile, Mr Speaker, the person has already been qualified under clause 25. So, if the person is qualified under clause 25, why should the person apply? That is the argument because clause 25 shows who benefits and who qualifies.

Mr Speaker, they may use their numbers to vote against it; they may do that, but at the end of the day, we are not helping Ghanaians. We know when the Question is put, they are going to win, but please, let us reflect. They should not only use the numbers. Let us reflect and that will help all of us. The Question can be put and they can vote against it. But at the end of the day, Hon Adongo, tomorrow they will deny your mother and her application will be refused.

Thank you.

Mr Second Deputy Speaker: Hon Members, I have no duty. Once there are various opinions, we would have to get one and the Question will have to be put, so that we can get which one the Majority of us stand for. There are three people who are saying clause 26 should be deleted entirely. So let me put that Question.

Question put and amendment negatived.

Clause 26 ordered to stand part of the Bill.

Clause 27 — Services.

Dr Nawaane: No advertised amendment.

Mr Second Deputy Speaker: Hon Members, per the Chairman, there is no advertised proposed amendment on clause 27. So, it is now before the House.

Mr Boamah-Nyarko: Mr Speaker, clause 27 is talking about the services and how the Board of Trustees will determine and advise the Minister accordingly. Mr Speaker, the medium of publication of that information is not determined. So, I want to make a proposal under clause 27. Under clause 27(2), it says that:

“The Fund shall provide the public with information in respect of...” So I want to *insert* “through their official website” before “in respect of” and then (a), (b), (c) and (3) can follow.

I so submit, Mr Speaker.

Mr Second Deputy Speaker: Thank you very much.

He is proposing that we include “through their official website”.

Yes, are you supporting it?

Mr Sosu: Yes, Mr Speaker, I support the proposal that we include “through their official website”. It is not harmful.

Mr Adongo: Mr Speaker, as good as it is to have a website, these are operational matters; they are administrative. I do not see how we will put creating an official website in the law. Those are operational matters and they are administrative. I am sure they will do that automatically.

Mr Akandoh: Thank you, Mr Speaker.

Mr Speaker, I agree with Hon Adongo. Better still, we can come by a Legislative Instrument (L.I.) to detail out the operationalisation of the Fund and not to specifically state it in the Bill.

Mr Ayeh: Thank you, Mr Speaker.

Mr Speaker, clause 27:

“The Board of Trustees shall determine the specialist healthcare packages...”

Mr Second Deputy Speaker: Hon Member, I want us to finish with the proposal. Is it the same?

Mr Ayeh: Yes, I am supporting the same point.

Mr Speaker,

“(1) The Board of Trustees shall determine the specialist healthcare packages available for beneficiaries in accordance with the object of the Fund.

(2) The Fund shall provide the public with information in respect of

(a) the specialist health packages available...”

Mr Speaker, when we read clause 27 and then we read the Memorandum which states that:

“The object of the Bill is to establish the Ghana Medical Trust Fund to mobilise resources to finance and support the provision of specialised medical care for the treatment of persons with chronic diseases and to provide for the management of the Fund.”

Mr Speaker, the Memorandum and clause 27 are a bit contradictory. I want the Chairman to explain to us; is it that when one is diagnosed with a specialised disease like cancer or something, there is a package? Does it mean that they are not taking care of the entire cost, but they are taking care of a package? Or are there some itemised things that they will take care of and some the Fund will not cover? I want us to be clear on the clause 27, then we can make progress.

Dr Nawaane: Mr Speaker, the details of the packages are subject to regulations. What is stated is in general terms, so let us exercise patience. As we operationalise the Fund, we should be able to get the details out, but it is subject to regulation.

Mr Second Deputy Speaker: Hon Member, I initially asked you whether you were going to talk about what Hon Boamah-Nyarko raised and you seemed to agree with him, but it appears your issue is completely different. So let me finish with Hon Boamah-Nyarko’s own.

I hope they have explained it to you.

Mr Boamah-Nyarko: Mr Speaker, from the explanation by my Colleague on the other Side and having looked at clause 45, which is “Regulations”, I believe that the medium of communication could be moved to clause 45. So, when we get to clause 45, the amendments can go to effect that.

Mr Ricketts-Hagan: Mr Speaker, I was just going to suggest that the Hon Member is actually ahead of himself, so we should deal with the clause that we are on.

Mr Second Deputy Speaker: Very well, that is fine.

Mr Ayeh: Mr Speaker, the point made by the Chairman, for me, is not clear.

Mr Speaker, we are setting up a health fund that is supposed to cure or help people who have chronic diseases. Then in establishing the Bill, we put conditions that say that we are going to give packages, not fully taking care of them. And we are asking the Chairman to clarify. When they say package, Mr Speaker, when somebody is diagnosed of—

Mr Second Deputy Speaker: Hon Member, we need to move on, so if you want us to do away with the packages, just propose an amendment to it.

Mr Ayeh: Mr Speaker, I am proposing that the mere diagnosis of a

chronic disease qualifies the person to be taken care of fully and there should not be any package.

Mr Second Deputy Speaker: So, look at it and give a rendition.

Mr Ayeh: No, I am just proposing that the clause 27 be taken off, Mr Speaker.

3.28 p.m.

Mr Second Deputy Speaker: Hon Member, during Consideration Stage, if you are not all right with what has been put forward, you propose your version and if Members in the House agree with you, then your amendment is carried and we move on. So, it is not just an explanation.

Mr Ayeh: No, I am not explaining, Mr Speaker; I think that I am clear. I am saying that clause 27 is contradictory to the Memorandum and the purpose of passing this Bill. So, the entire clause 27 should be taken off. I am clear.

Question put and Amendment negatived.

Clause 27 ordered to stand part of the Bill.

Clause 28 — Quality assurance

Mr Second Deputy Speaker: Chairman, I have seen an advertised amendment.

Dr Nawaane: Yes, Mr Speaker, we have an advertised amendment.

Subclause 1 of clause 28, paragraph b, line 1, after “provide”, *insert* “specialist”. So, the new rendition for clause 28(1)(b) will be, “licensed to provide specialist medical services by the relevant regulatory body in the country”. I so submit.

Mr Second Deputy Speaker: Hon Members, the Chairman is proposing that in clause 28(1)(b), after “provide”, we should insert—

Dr Nawaane: We insert “specialist”.

Mr Second Deputy Speaker: And he has read the rendition to us.

Question put and amendment agreed to.

Clause 28 as amended ordered to stand part of the Bill.

Mr Second Deputy Speaker: Hon Members, I hope you are not tired because the responses are not coming.

Clause 29 to 34 ordered to stand part of the Bill.

Clause 35 — Payment to enlisted service provider.

Dr Nawaane: Mr Speaker, there is no advertised amendment

Mr Second Deputy Speaker: Yes, Hon Isaac Boamah-Nyarko?

Mr Boamah-Nyarko: Mr Speaker, clause 35(3) states:

“Payments to enlisted service provider

(3) The Fund shall not pay less than the face value of a claim submitted to the Fund by an enlisted service provider where six months have lapsed since the receipt of the claim by the Fund.”

This particular rendition is vague in terms of exactly what is expected to be the position of payment. If it should be paid with interest, it should be stated, so that whoever is responsible for the implementation of this particular clause is guided.

So, I want to propose under clause 35(3) be read:

“The Fund shall pay the face value with interest of a claim submitted to the Fund by an enlisted service provider where six months have lapsed since the receipt of the claim by the Fund”.

Question put and amendment negatived.

3.38 p.m.

Mr Annoh-Dompreh: Mr Speaker, any time you put the Question, my Colleagues shout the loudest, “No”. Even when we are making very feasible and good suggestions, they shout, “No”. I just want to remind them that Ghanaians are watching them. They are rejecting all the good suggestions from our Side. Once it is coming from our Side, they will shout, “No” and reject it. We live to see.

Clause 35 to 41 ordered to stand part of the Bill.

Clause 42 — Appeal.

Mr Second Deputy Speaker: Yes, Chairman, is there any proposed amendment to clause 42?

Dr Nawaane: No advertised amendment.

Mr Poku-Adusei: Mr Speaker, I want to propose that “sixty days” be *deleted* and in its stead, we make it “thirty days”, so that it will create a very convenient avenue for administration because 60 days is too long.

Mr Second Deputy Speaker: Specifically, which paragraph?

Mr Poku-Adusei: I am talking about clause 42(1)(c), line 2. Mr Speaker, if the person is not serious and will not bring their appeal within 30 days, I do not see why we should allow a whole 60 days to, as it is, bring an appeal.

Mr Second Deputy Speaker: So, instead of 30 days, you are suggesting 60?

Mr Poku-Adusei: No, instead of 60 days, I am suggesting 30, because clearly, the Minister shall also within 30 days deal with the appeal. So the person should not have more than 30 days within which to take a decision.

Mr Speaker, at least, it will expedite or help with the administration processes.

Mr Second Deputy Speaker: Hon Members, the Hon Member for Bekwai

has put in an amendment that we *delete* “sixty” and *insert* “thirty”.

Question put and amendment negatived

Clause 42 ordered to stand part of the Bill.

Clause 43 — Redress in court

Dr Nawaane: Mr Speaker, there is no amendment proposed.

Mr Second Deputy Speaker: Hon Members, there is no proposed amendment to clause 43.

Mr Dafeamekpor: Mr Speaker—

Mr Second Deputy Speaker: Mr Speaker, Majority Chief Whip, I have not called you.

Mr Dafeamekpor: Mr Speaker, I am trying to catch your attention and your eye.

Mr Second Deputy Speaker: Alright, speak now.

Mr Dafeamekpor: Mr Speaker, for the sake of consistency under clause 42, we enlarged time for an aggrieved person to 60 days within which to appeal. Now, in clause 43, if an entity is aggrieved by the appeal decision or the appellate decision in clause 42, we are limiting that to 30 days. I think that for the sake of consistency, if we can make—
[Interruption]—Please [Uproar]

Mr Second Deputy Speaker: Hon Members, I have already put the Question, so we will move on.

Clause 43 ordered to stand part of the Bill.

Clause 44 — Data privacy and security.

Dr Nawaane: There is no advertised amendment.

Mr Andrew Dari Chiwitey: Mr Speaker, I am not standing to propose an amendment, but this is something I have observed and I want to put across. Mr Speaker, I have been here in the Seventh and Eighth Parliaments and I never saw this kind of disagreement and partisanship in making laws. Maybe, the way we carry ourselves when we are putting our issues across, that is what is bringing this.

We are making a law that will stay for the people of Ghana, so for me, I would suggest that—

3.48 p.m.

Mr Speaker, just like I was saying, it is probably because of the way we carry ourselves when we are bringing out our issues. *[Uproar]*

Mr Speaker, thank you but I think you should guide us. *[Uproar]*—We should not let it look like we are playing politics with everything. Thank you, Mr Speaker.

Mr Second Deputy Speaker: Very well, we have taken your wise counselling and Hon Chiwitey, I think

that has been the mode because there have been a lot of amendment suggestions, but the votes have always gone against new proposed amendments, so probably we would look at it again

Mr Anyimadu-Antwi: Mr Speaker, I pray thee. You would realise that you directed the mace to be tilted and that is why we do not have to be very strict at this moment. Mr Speaker, a proposal was made by another Member and a senior Member and I see some point or some sense in the proposal that was made. Even though the question had been put and we are taking a decision on that, because the mace is tilted, Mr Speaker. I pray thee, you can always relax the rules in order that we can enrich the Bill. Because maybe at the time an opportunity will come for second consideration, the person who had supported the proposal may not be here but there are a lot of things that have gone down the carpet and I think it does not help. If you go that way, we are in trouble as a nation. Thank you

Mr Second Deputy Speaker: Very well. I personally share that view but whatever it is, Parliamentary democracy deals with majority so if there is a proposed amendment and the Majority says no, I cannot say anything otherwise. So as much as some of the amendments are germane, if the majority says no, you cannot say anything otherwise. So, we will move on but we would take the advice on board.

Prof Beyuo: Mr Speaker, I just want to make a point that this Bill has been discussed extensively at the Committee level—

Mr Second Deputy Speaker: Hon Member, the mere fact the Bill has been discussed at the Committee level does not mean that the House cannot take a close look at it—[*Uproar*]—

Hon Members, let us turn to clause 44.

Clause 44 ordered to stand part of the Bill.

Clause 45 — Regulations

Mr Second Deputy Speaker: Any advertised amendment?

Dr Nawaane: No advertised amendment.

Mr Second Deputy Speaker: Very well.

Let me listen to the Hon Member for Klottey Korle?

Dr Zanetor Agyeman-Rawlings: Thank you Mr Speaker, on the issue of interpretation for chronic disease, what we have here is the—

Mr Second Deputy Speaker: Hon Member, we are doing clause 45 not 46.

Dr Agyeman-Rawlings: Thank you.

Mr Francis-Xavier Kojo Sosu: Thank you very much, Mr Speaker.

Mr Speaker, I want to propose an amendment to clause 45, particularly, in the light of the urgency of the Bill. It says that the Minister may by legislative instrument make regulations to provide

for a number of things that I believe would give would give life to beneficiaries under this Bill. So it will be appropriate if we have some timeline within which the Minister will come because of the urgency of the Bill.

Mr Speaker, I will propose that the rendition will be “The Minister may by Legislative Instrument within 12 months upon coming into force of this Bill into law make regulations to provide for the following”. This should be done so that there is enough time and because it is also important for the Subsidiary Legislation Committee too.

Mr Nyindam: Thank you, Mr Speaker. On Clause 45 (d), “the Minister may, by legislative instrument make relations to provide for the classification of chronic diseases for the purpose of this Act”. But if you look at the interpretation, chronic diseases have been defined, so I do not know if we are conflicting because — the definition is different from classification.

Mr Second Deputy Speaker: Very well, Hon Members, then I will put the question on Hon Sosu’s amendment.

Mr Dafeamekpor —rose—

Hon Majority Chief Whip, is your intervention the same as Hon Sosu’s amendment?

Mr Dafeamekpor: Mr Speaker, indeed I intend to propose a further amendment to Hon Sosu’s amendment. Mr Speaker, it should not even be “may”. The standard phrase that we have adopted in this House for this particular provision

is that “The Minister shall”—*[Interruption]*— Please check all the recent legislations. The problem is that we have some enactments from this House that are about 20 years old, but the Ministers have not come by Regulations to give effect to them. So in this House, within the last two Parliaments, we have decided to give time frames to Ministers within which to come by Regulations to give effect to laws that we pass so we have adopted “The Minister shall within 12 months upon coming to effect of the law will come by regulations” so it is not even “may”, it is “shall” because this is a Fund that we are setting up to deal with emergency situations and we need the Regulation to give effect to the issues that we have —

Mr Second Deputy Speaker: Very well.

Question put and amendment agreed to.

Clause 45 as amended ordered to stand part of the Bill.

Mr Second Deputy Speaker: Is there any further amendment to the regulation?

Mr Boamah-Nyarko: That is so, Mr Speaker. I am referencing clause 27 where I made a proposal which would be reflective at clause 45 which has to do with the publication of information. So, I am making the proposal at clause 45 to insert “the Minister may, by legislative instrument make regulations to (f) provide the public with information in respect of—

Mr Second Deputy Speaker: So, we are adding it to (f).

3.58 p.m.

Mr Boamah-Nyarko: So, I am making the proposal at clause 45 to insert another sub clause (f) to read:

“The Minister may, by legislative instrument, make Regulations to provide

(f) information on the specialist packages available for...”

So, the drafters can conclude that from that side.

Mr Second Deputy Speaker: Are you clear with his proposed amendment? Yes, let me listen to Senior Anyimadu-Antwi.

Mr Anyimadu-Antwi: Mr Speaker, I am not too comfortable, especially when the mood of the House is no, but I will urge upon the Majority Chief Whip to consider the “shall” and the “may”. I will propose that we use the “may”, because under this, once we say—I am aware of us making sure that the Minister would have to act within a duration of time and proposal is 12 months. But Mr Speaker, clause 45 (a), (b), (c), (d) and (e) may not all come in one Regulation and a Minister may choose to come up with more than one Regulations. The moment we make it “shall” and it comes out with one Regulation, then the Minister may go to sleep thinking that he had done it all. But the Regulation he may bring may cover (a) or (b) or (a), (b) and (c) or any of them

and that is why we do not have to use the “shall”. But the time frame is to guide him to be sure, especially when the Minister is in a rush to pass this Bill. I think he must be in a hurry as well to come up with the Regulations. So Mr Speaker, I would pray and urge upon the Majority Chief Whip that we use “may” instead of “shall”.

Thank you.

Mr Dafeamekpor: Mr Speaker, we put the Question on that provision, so let us do a Second Consideration so that we can look at these matters. Let us make progress.

Mr Second Deputy Speaker: So, we will come back very soon. We will come back to it. Yes?

Mr A. T. Sulemana: Mr Speaker, much as I agree with the point that has been raised by Hon Anyimadu-Antwi, I think that having regard, especially to clause 45(c), “for the forms to be used under this Act”, a little tardiness would mean that these forms would not be available. I would agree with the learned Majority Chief Whip that we make it mandatory and not permissive, so that the Minister is caught within a certain time frame to come to this House with the Regulations, so that we will give effect, especially to 45(c), even if we are not doing any other provision. But 45(c), the forms must be normally attached.

Thank you, Mr Speaker.

Mr Second Deputy Speaker: So, it means you are going with what we have already adopted. Is that not the case?

Yes, Member for Kwesimintsim?

Mr Philip Fiifi Buckman: Thank you very much, Mr Speaker. In respect of 45(c), I would want to humbly pray that to make it clearer—It says:

“The Minister may, by legislative instrument, make Regulations to provide

(c) for the forms to be used under this Act.”

I would humbly suggest that we bring,

“for the forms to be used under Section 26(2) of this Act”

So that it will bring clarity, because if we say “for the forms to be used”, we have provided for under 26(2) that, the person shall be in a prescribed form. So that “form”, at least it refers to it to bring clarity to it. So, I am proposing that we make it “for the forms to be used as prescribed under 26(2) under this Act” to bring clarity.

Mr Second Deputy Speaker: You want us to go back to 26(2)?

Mr Buckman: No, I am looking at clause 45. So, I am saying that we insert to clause the 26(2) to make it clear.

Mr Second Deputy Speaker: Hon Members, that is the proposal. But before then, let me put the Question on Hon Isaac Boamah-Nyarko’s proposal that we should add (f) to clause 45. Is that not the case? Yes, if you can propose it so that we put the Question on then.

Mr Boamah-Nyarko: So, Mr Speaker, I beg to move that the (f) reads:

“The Minister may by legislative instrument, make recommendations to provide

(f) to the public, the medium of information in respect of clause 27.”

Mr Second Deputy Speaker: So, Hon Member for Kwesimintsim, it is almost the same thing that you are saying.

Mr Akandoh: We are not too clear.

Mr Second Deputy Speaker: Hon Member, people are not clear with the rendition.

Mr Akandoh: Yes, I am not too clear, so let us follow you.

Mr Boamah-Nyarko: Hon Minister, so under 27(2), it said:

“The Fund shall provide the public with information in respect of...”

So, it is the medium of information. That was what we wanted to amend here and then we said it should go to the Regulation. So, we want to bring under 45, a subclause (f), that:

“The Minister may by legislative instrument, make recommendations to provide

(f) to the public, the medium of information in respect of clause 27.”

Do you understand it now?

Mr Second Deputy Speaker: Hon Members, that is the proposal. Let me put the Question. So, we move on.

Mr Dafeamekpor: Mr Speaker, instead of the 45(f) that he is proposing, the 45(e) is the general *proviso*. So, it should be 45(e). Then the existing 45(e) now become the 45(f). So, it is a matter of ranking the provision. So, the drafter will take note. Because he is proposing that it should be 45(e) but if we read the provision as it is, 45(e) becomes the general *proviso*. Because it says:

“(e) generally, for the effective and efficient implementation of this Act”.

Mr Second Deputy Speaker: The point is, the numbering is not a problem. The drafters will take care of it. But the content of his proposal, that is what I am a bit—

Hon Shaibu?

Mr Shaibu Mahama: Mr Speaker, 45(e) is omnibus enough to cover the remaining staff. So, it says:

“... make Regulations to provide (e) generally, for the effective and efficient implementation of this Act”.

So, it will cover the remaining things.

Mr Second Deputy Speaker: Hon Sosu?

Mr Sosu: Thank you very much, Mr Speaker. The parent Act is indeed a source of law and Regulations give us the

details of how the law should be implemented.

Mr Speaker, indeed, Regulations are in the form of administrative instructions, even though they are legal because they are made pursuant to the Constitution of Ghana, particularly Article 11. The parent Act must clearly state and identify what it intends the Regulation to provide for. So, Mr Speaker, if there is a provision that says that public information must be given and we have not shown how it must be given.

4.08 p.m.

It is perfectly all right for the Member to make the proposal that, under the Regulation provision, we can say that the Regulation will also provide for the medium by which the public information will be provided.

So, Mr Speaker, I support the amendment.

Mr Second Deputy Speaker: Very well, but I wanted the rendition well. The rendition was not coming up well.

Mr Sosu: So, Mr Speaker, maybe, the rendition may go this way.

“The Minister may, by Legislative Instrument, within 12 calendar months of this Regulation, shall make regulations to provide the medium for public information in respect of Regulation 27”.

Mr Second Deputy Speaker: Is that all right?

Question put and amendment agreed to.

Mr Second Deputy Speaker: Hon Members, I think when you said the mandatory “shall”, Hon Anyimadu-Antwi also came out—That is on 45.

Mr Dafeamekpor: Mr Speaker, but that got defeated because we if we take all the—

Mr Second Deputy Speaker: Very well.

So, now, let me put a Question on clause 45 as a whole.

Yes, my Brother?

Mr Nyarko: Mr Speaker, I still come under 45. Having served on the Committee on Subsidiary Legislation for the last Parliament, I have little idea on how laborious it is to prepare a Regulation. Clause 26 requires that if one wants support, one has to complete a form and we are saying that we should wait for a Regulation to prescribe what the form should look like.

Mr Speaker, it means that if President Mahama signs this Bill on Friday, on Monday, if somebody wants support, the person will have to wait. I want to propose that this form be designed and attached to this Act as a Schedule, so that Clause 26 will only refer to the Schedule, so that (c) can be taken off from clause 45.

Mr Second Deputy Speaker: Very well.

Yes, is that the position of the House?

Mr Dafeamekpor: Mr Speaker, indeed, he has a very germane point that the forms that we are referencing will come by way of a Schedule. Let me give an example: when we were done with our Standing Orders, we had to design forms to be attached to the Standing Orders in the form of Schedules. So, the drafters can be mandated to, in consultation with the sponsors, design some forms that will come in the form of a Schedule to be attached to the Bill as is done.

But it ought to have been done to be taken as part of Consideration Stage, so that whatever amendments there are, it would have gone through. But it is not belated; it can be done.

Mr Second Deputy Speaker: So, Hon Members, let me direct the drafters to quickly—

Dr Nawaane: Mr Speaker, yes, inasmuch as these forms, *et cetera*, are supposed to be picked up by the Regulations, the scheme can operate without them. I am saying this because it is a referral system. It is a gatekeeping system and the owner of the patient is the specialist.

Mr Dafeamekpor: Mr Speaker, we are saying that, by Regulations— So, the Minister can, by Regulations, design those forms. It will still be brought to this House, referred to the Committee on Subsidiary Legislation for consideration and Report, so it can be done.

Mr Second Deputy Speaker: But normally, the form we are talking about, which is normally prescribed by the Schedule, is always attached to the Bill. We approve it together. So, like today, we are approving this, after the Interpretation, we deal with the Schedules, so that they will be done once and for all. But as it stands now, we do not have the Schedule here. So, we will handle it as we move on.

So, Hon Members, let me put the Question.

Hon Member for Yendi, let me hear you.

Mr Abdul-Fatawu Alhassan: Mr Speaker, I was just going to say that, instead of leaving it to the Minister to come by way of Regulations, why do we not say, for instance, an application under subsection (1) shall be in the prescribed form approved by the Minister. So, that, even tomorrow, if the process starts, the Minister can still design a form—*[Interruption]*—If we want to leave it to the Regulation, that is when the challenge that the Hon Member raises come in handy.

But if it is approved by the Minister, whether it is by Regulation or by any manner of approval, it suffices.

Mr Dafeamekpor: Mr Speaker, for instance, if we take the Cyber Security Act, which is one of the recent legislations we passed, we mandated the Minister responsible for National Security to come by Regulations. And there were Schedules that were to have

been prepared like forms. We gave the Minister the mandate to, by guidelines— So, in the National Cyber Security Act, the guidelines that were enacted have the force of law.

So, they used the Regulations to prepare guidelines that came out with a lot of forms as to what to do and what not to do and all that. So, we can, by similar legislation, say that they can use the Regulations to design guidelines in the form of forms or whatever that will give effect to the implementation of the law. It has been done by this House, Mr Speaker.

Mr Second Deputy Speaker: Well, I think that is the sense of law-making. I think the Hon Member for Yendi made a fantastic point. As far as we do not have the Schedules attached, if the House can mandate the Minister to design, as the case may be, for the House to also have a look at it and probably give their approval to it; then we can move on from there. Because, as it stands now, we do not have it here and we are almost done with the Consideration Stage.

Question put and amendment agreed to.

Clause 45 as amended ordered to stand part of the Bill.

Clause 46 — Interpretation

Dr Nawaane: Mr Speaker, there is no advertised amendments.

Mr Second Deputy Speaker: Yes, Hon Zanetor Agyeman-Rawlins?

Dr Agyeman-Rawlins: I would like to proffer an amendment to the definition of chronic disease. I would like to suggest that we include auto-immune diseases as part of the chronic diseases.

Mr Second Deputy Speaker: Very well.

Dr Agyeman-Rawlins: Auto-immune diseases are basically a spectrum of diseases where the body does not recognise itself anymore and it starts to fight itself. There are a lot of sufferers of auto-immune disease in Ghana and the cost of medications is extremely high.

4.18 p.m.

Many of them are within a socio-economic class where they cannot afford the medication. So, if we do not specifically mention them here, they may not be considered as part of clause 45(d), where it talks about the classification of chronic diseases for the purposes of the Act. So, it is just to make sure that autoimmune is included.

Mr Second Deputy Speaker: Is that the position of the House? [*Hear! Hear!*]

So, I would put the Question. All right, you have other amendments?

Dr Agyeman-Rawlins: I would also like to include sickle cell disease to the list. So, the new rendition would read:

“Chronic disease” means a condition that lasts for one year or more and requires ongoing medical attention or limits activities of daily living and are

the result of a combination of genetic, physiological, environmental, and behavioural factors, including cardiovascular diseases such as heart attacks and stroke, cancers, chronic respiratory diseases such as chronic obstructive pulmonary disease and asthma, diabetes, and autoimmune diseases.”

It may give an example such as systemic lupus erythematosus and sickle cell disease.

Mr Second Deputy Speaker: Dr Sandaare, are you going to speak to that?

Dr Sandaare: Mr Speaker, medically, we are together, but if we look at the clause, once it states “including”, it means there are so many other diseases that we cannot list —*[Interruption]*—Let us add it, so that we make progress.

Dr Agyeman-Rawlins: Mr Speaker, the reason I am specifically mentioning autoimmune and sickle cell is because if we are going to talk in general, these are two groups of patients who really suffer a lot but are not recognised and a lot of people go undiagnosed. If attention is brought to it, then it means that we can make sure that they are included and that they are seen as well.

Mr Anyimadu-Antwi: Mr Speaker, I am not sure that I am very comfortable with the proposal that is made by my Sister and I expect the Minister and the Chairman, especially when the Chairman is a medical officer—

Mr Speaker, I am not a doctor, but I know that the autoimmune diseases are not non-communicable disease (NCDs). Sickle cell is not NCDs, so what is the policy direction? If we look at what is proposed or what is before us, we are making a law to cater for the NCDs. My Sister may want to—If it is not a non-communicable disease, why do we include it here? That is my difficulty. So, if by way of policy, the Minister would want to extend and do some changes, so be it. The Chairman must also help, so that we know whether we are doing NCDs or other diseases.

Mr Second Deputy Speaker: Now, I have seen three medical doctors. All of them are—Let me finish with Dr Zanetor first.

Dr Agyeman-Rawlins: Mr Speaker, I think perhaps a little bit of clarification is needed. Non-communicable diseases, say, something that is not infectious, that people cannot catch. One cannot catch an autoimmune disease; one cannot catch sickle cell. It is genetic; it is environmental and that falls within this spectrum. I am only specifying those two because of the way they are neglected when it comes to health care in Ghana.

Dr Thomas Winsum Anabah: Mr Speaker, I would in part, support her, and in part, also support Mr Anyimadu-Antwi. This is simply because if she is saying we should add sickle cells and autoimmune, yes, they can lead to chronic ailments.

The definition says that a disease that has been lingering for more than a year

and needs continuous medical support for management.

Sickle cell is not the only genetic disease that can linger for more than a year. Once we have “genetic” here, it will include even thalassemia, which also gives problems to people. So, it will cover diabetes.

In other words, the genetic is enough. We should not mention specific diseases. The team that is going to classify the diseases into the array of diseases to be covered by the scheme will determine it depending on the prevalence in the country, the incidence levels and how people suffer to maintain themselves. There are people who may have it that do not need the Trust. So, let us allow the Trust to come out with the classification of the diseases that they will use.

But, in essence, sickle cells is not the only genetic disease and it is not the only one that will live for long in the patient. We should allow the genetic to stay, so that all genetic diseases that are found to be debilitating people will be covered under this. Or else, we will hype one and leave the rest. To me, let us leave it at genetic.

We can add the autoimmune, which is not covered, but we should leave the sickle cell out of the genetic and add autoimmune because there are also several of them. Then, the team that would do the classification would gather them, put them together and give it to the Trust. To me, there should not be any amendment, except to add autoimmune disease.

Mr Second Deputy Speaker: So, it means that one calls for amendment.

Mr A. T. Sulemana: Mr Speaker, I think that there is likely going to be an interpretation problem. If we expand the meaning of chronic to include non-chronic diseases, *ejusdem generis* and *norscitur a sociis*, we are going to have a challenge.

Mr Speaker, if we like, we can make it “chronic and other acute diseases”. If we say that, then we are likely to extend the meaning, but if we keep it this way and this matter goes to court, the judge is going to be urged on to interpret chronic to mean what is chronic and what is non-chronic cannot be added to this one.

Mr Speaker, we need to be very careful. We are passing the law, but we do not interpret the law. At the very least, we have the tools of interpretation in our possession, so we should be able to apply it here and not embarrass ourselves when somebody takes us to court.

Dr Afriye: Mr Speaker, my understanding of this Bill, and consistently as it has been, is to provide Medicare for treatment of persons with chronic diseases. If we come to the Interpretation, they have defined it in a manner that autoimmune, whether it is sickle cell disease, they have brought in a sort of definition, “genetic”

Mr Speaker, if we go to ICD-10 and ICD-11 classifications of diseases now, we realise that we have not missed, by virtue of what you have stated here, underlining causes of chronic diseases,

genetic, physiological, environmental, behavioural and others that they have brought. So, to be able to state autoimmune—

4.28p.m.

Yes, auto-immune is absolutely familial; genetic. Sickle cell disease; genetic. It is defined by genotypic expression— genetic.

So, Mr Speaker, if we keep it as it is, we are safe to land; extremely safe. And their L.I. will detail as our L.I. so long as it is not MahamaCares.

Dr Agyeman-Rawlings: Thank you, Mr Speaker.

The reason why I raised the issue specifically on autoimmune disease is the fact that currently, lupus sufferers' medications are not covered by the NHIS. Where are these people going to get the support to get these medications that they need for conditions that are lifelong? A lot of them end up dying very young and it mostly affects women. Mr Speaker, I am only bringing this to the attention of the House so that the people who have autoimmune diseases do not get forgotten yet again because if the case is that we are not going to be specific about it, then something should be done so that the NHIS covers the cost of their medications. It is so expensive and most of these people are from vulnerable communities and are in the lowest socioeconomic group. Otherwise, we are leaving out a huge number of people who suffer from a disease which has high cost of medication to manage. And many of

them die because of lack of access to medical care, because they cannot afford these medications. So, Mr Speaker, this is the reason I am harping on the inclusion of this particular word in this definition.

Mr Second Deputy Speaker: So, Hon Members, the medical professionals, is it the case that the Bill as we have it now is not capturing the specific disease? Is it captured? So, if it is captured, then— So, Hon Zanetor—

Yes, Chairman, let me hear you.

Dr Nawaane: Mr Speaker, yes, some are captured, but some are also like mixtures. When I say mixture, it is genetic with infection, analgesic component, *et cetera*. So, what she is suggesting, Systemic Lupus Erythematosus (SLE) is a chronic disease all right but I think that she wants us to emphasise on that aspect, because it is another— After all, looking at the rendition, they are mentioning stroke and cardiovascular disease, they could have mentioned hypertension, diabetes, *et cetera*. But with what she is proposing, she wants to emphasise that because I think she believes that in this country we are not paying special attention to this group of disease. So, we should state it to be emphatic and clear.

Mr Second Deputy Speaker: So, as Chairman, what is your position?

Dr Nawaane: I propose that we should add it.

Mr Second Deputy Speaker: Then, Hon, just give us a rendition, then we will put the question.

Hon Zanetor, can you give us rendition, as to how you want it to be captured?

Dr Agyeman-Rawlings: Mr Speaker, given the fact that sickle cell is clearly a genetic disease, I will stand down my recommendation for that to be named specifically. However, the fact that autoimmune disease is not strictly genetic, nor strictly environmental, I will include that.

So, the rendition that I propose is, “chronic disease means a condition that lasts for one year or more, and requires ongoing medical attention, or limits activities of daily living, and are the result of a combination of genetic, physiological, environmental, and behavioural factors, including cardiovascular diseases, such as heart attacks and strokes, cancer, chronic respiratory diseases such as chronic obstructive pulmonary disease and asthma, and diabetes, and autoimmune diseases.”

Mr Second Deputy Speaker: Hon Members, there is a proposed amendment.

Question put and amendment agreed to.

Clause 46 as amended ordered to stand part of the Bill.

Clause 47 ordered to stand part of the Bill.

Schedule ordered to stand part of the Bill.

Mr Second Deputy Speaker: Yes, have you read the long title?

Mr Dafeamekpor: No, Mr Speaker, I pray that we do a brief Second Consideration in respect of clause 38. Mr Speaker, it is very important because the amendment we carried will take away institutions that we have by law established in this House.

The amendment we carried is to the effect that “an organisation qualifies to apply for registration as a third-party administrator if the organisation is registered under the Companies Act, 2019 (Act 992).”

Mr Speaker, regional and teaching hospitals have been set up by an Act of Parliament so it means that they will be taken out of this. They cannot be a third-party administrator. And I think that we should add a provision which is to the effect that “or established by an Act of Parliament” so that institutions that we have set up by an Act of Parliament can be covered.

I thank you for the opportunity.

4.38 p.m.

Mr Second Deputy Speaker: So that is a proposed amendment on Second Consideration on clause 38.

Hon Dafeamekpor, have you looked at the definition for “a third-party?”

That is page 23:

“third-party administrator’ means an organisation or an agency that has been contracted by the Fund to provide operational services...”

Going through the definition, do you still hold on to your amendment?

Mr Dafeamekpor: Mr Speaker, what does third-party administrator say? It says:

“...means an organisation or an agency that has been contracted by the Fund to provide operational services such as claims vetting and processing, patient navigation, benefits management and monitoring ...”

We are saying that by this definition, the Fund cannot contract third parties that are established by an Act of Parliament; that is all we are saying. We are saying that they can only contract entities established under the Companies Act, 2019 (Act 992). So, they cannot contract entities that we have established to operate within the health sector. So, it is a problem.

Mr Second Deputy Speaker: Anyway, his proposal is before the House.

Mr Sosu: Mr Speaker, I rise to support the proposal that we include—

Mr Second Deputy Speaker: Very well. So, I will put the Question.

BILL — SECOND CONSIDERATION STAGE

Ghana Medical Trust Fund Bill, 2025

Mr Dafeamekpor: The proposal is that clause 38, I believe, should read

“Qualification as third party-administrator.

An organisation qualifies to apply for registration as a third-party administrator if the organisation is registered under the Companies Act 2019, (Act 992) or established by an Act of Parliament.”

My amendment is to include, “or entities established by this House”.

Mr Second Deputy Speaker: Is that the position of the House?

Mr A. T. Sulemana: Mr Speaker, what is the mischief we intend to cure here? Because third party administrator has been defined. It reads:

“...means an organisation or an agency that has been contracted by the Fund to provide operational services such as claims vetting and processing patient navigation, benefits management and monitoring and evaluation of services.”

Now, what kind of company does he anticipate that has been established by this House that will come under the class of organisations that we are seeing as third parties? Maybe he should help us.

Mr Dafeamekpor: Mr Speaker, clause 38 as it is, as carried by this House, is taking away entities that we have established by enactments that are playing a role in the health sector. And we are saying by this new legislation, the Fund cannot even contract them to be third party administrators. I do not think

we can do that. That is why I am saying that third-party administrator should —

Mr Second Deputy Speaker: So, Hon Dafeamekpor —

Mr Dafeamekpor: Mr Speaker, like the teaching hospitals, we set them up by enactment.

Mr Second Deputy Speaker: Hon Dafeamekpor, let me find out from you. Apart from a few hospitals that are established by an Act of Parliament, there are numerous of them that are not. So, even the cure that you want to proffer is only limited to few of the institutions: teaching hospitals and few other hospitals. It does not cover the Community-Based Health Planning and Services (CHPS) compound in your Constituency.

Mr Dafeamekpor: Mr Speaker, the teaching hospitals are major health institutions that we cannot in this House, enact any law to take away their role.

Mr Second Deputy Speaker: Anyway, Hon Members, his proposal is before the House. Yes, Hon Boamah-Nyarko?

Mr Boamah-Nyarko: Mr Speaker, guided by clause 37(2):

“For the purpose of subsection (1), a third-party administrator includes the following organisations:

- (a) relevant public sector organisations...”

Does that not reflect what he is saying?

Mr Dafeamekpor: Mr Speaker, that is exactly my point. So, why would we, in clause 38, say that an organisation qualifies to apply for registration as a third-party if only it is established under —

Mr Second Deputy Speaker: Hon Member, give the rendition and let us put the Question.

Mr Dafeamekpor: Yes, I have given the rendition, Mr Speaker.

Mr A. T. Sulemana: Consider using another physiology.

“An organisation qualifies to apply for registration as a third-party administrator if the organisation is a registered body corporate.”

Now, those established by law and under the Companies Act, 2019 are all body corporates. Then maybe we can have an omnibus clause or something like that. I think that this proposal should fly instead of having the “Companies Act, 2019”.

Mr Second Deputy Speaker: That is also a counter proposal. So, which is which?

Mr Dafeamekpor: Mr Speaker, I think that the second amendment takes care of my concern. So, once we use body corporate, it means those incorporated under the Companies Act, 2019 as well as

those set up by an enactment. So, I support the present amendment.

Mr S. Mahama: Mr Speaker, when we say “body corporate”, it is a different thing altogether. If we say “body corporate”, it would take away institutions that are limited by guarantees. So, Leader —

Mr Second Deputy Speaker: Leader?

Mr S. Mahama: Leader should re-do his rendition and then we can support him.

Mr Second Deputy Speaker: Hon Members, let us finish up.

Mr Dafeamekpor: Mr Speaker, my rendition, simply, is to the effect that, after “2019 (Act 992)”, *insert* “or established by an Act of Parliament.” To read:

“An organisation qualifies to apply for registration as a third-party administrator if the organisation is registered under the Companies Act, 2019 (Act 992) or established by an Act of Parliament.”

This is because the entities have all been provided in the provision, so “or established by an Act of Parliament.”

Question put and amendment agreed to.

Clause 38 as amended ordered to stand part of the Bill.

Long Title ordered to stand part of the Bill.

Mr Second Deputy Speaker: Hon Members, we bring to an end the Consideration Stage.

Hon Minister for Health, kindly do us the honours by taking the Motion numbered 25.

4.48 p.m.

BILL — THIRD READING **Ghana Medical Trust Fund Bill, 2025**

Minister for Health (Mr Kwabena Mintah Akandoh) (MP): Mr Speaker, I beg to *move*:

That the Ghana Medical Trust Fund Bill, 2025 be now read the Third time.

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor): Mr Speaker, I rise to second the Motion.

Mr Second Deputy Speaker: Hon Members—Leader, let us finish and go.

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, Order 172(4) reads:

“A Motion for the Third Reading of a Bill shall not shall not be made on the same day as the Second Reading, except as provided for in Order 160”.

Mr Speaker, with respect to the Minister, nobody is stopping this. We are going to get it passed, but let us respect the Orders.

Mr Second Deputy Speaker: Leader—

Mr Annoh-Dompreh: No, Mr Speaker, with respect—

Mr Second Deputy Speaker: I share your view—

Mr Annoh-Dompreh: Mr Speaker, what will happen if we take the Third Reading tomorrow? But that is a requirement of the Orders.

Mr Second Deputy Speaker: Leader, that is why before we took the Bill, we discussed the need to take it under the certificate of urgency. So, once the House agreed on that, there are so many—

Mr Annoh-Dompreh: He should proceed.

Mr Second Deputy Speaker: Very well.

Mr Annoh-Dompreh: Let him proceed.

Mr Second Deputy Speaker: Hon Deputy Majority Leader, please, second the Motion for me—Has Motion been seconded?

Mr Ricketts-Hagan: Mr Speaker, it has been moved and seconded. It has been done already.

Mr Second Deputy Speaker: Hon Members, the Motion listed as 25 in

today's Order Paper, page 13 specifically, has been moved and seconded.

Question put and Motion agreed to

The Ghana Medical Trust Fund Bill, 2025 — *read the Third time and passed.*

Mr Second Deputy Speaker: Yes, Leader?

Mr Ricketts-Hagan: Mr Speaker, I wanted us to turn our attention to Order Paper *Addendum 2*.

Mr Second Deputy Speaker: Hon Members, please, we are going to constitute the House into—

But before then, kindly help me to let these Papers be laid and afterwards, we constitute the House into a Joint Caucus.

Mr Ricketts-Hagan: Mr Speaker, so we are looking at the Order Paper *Addendum 2* for some Papers to be laid. The Minister for Foreign Affairs is not here, I wanted to plead with you to ask the Minister for Health to do it on his behalf.

Mr Second Deputy Speaker: But the Deputy Minister for Finance is here.

Mr Annoh-Dompreh: Mr Speaker, may I invite you to Order 96. Mr Speaker, I am relying on the combined effect of Order 96 and 97. Mr Speaker, I am particularly relying on Order 97(3). I have no issues with his application for a Minister to do the laying. However, if you read Order 97, it says, Mr Speaker, with your leave:

“(3) A short explanatory statement shall be made by the person presenting a Paper where requested by the House or a Member upon the presentation.

(4) Where the person presenting the Paper is unable to comply with the request under rule (3), the Paper is considered not to have been laid.”

Mr Speaker, I humbly request that the Minister who has been asked to present the Paper instead of the Minister for Foreign Affairs give a short explanatory note on each of the Papers.

I so request, Mr Speaker.

Mr Second Deputy Speaker: Hon Members, the Member is standing on Order 97(3) that laying Papers should be accompanied by, at least, a short explanation to the House and by extension to the country. So, we will allow a Minister to lay it, but, at least, we need to get a brief explanation.

Mr Dafeamekpor: Mr Speaker, my Brother, the Minority Chief Whip, is raising issues under Order 97(3). Mr Speaker, but let us read Order 97(2). With your leave, Order 97(2) is to the effect that if so desired by the person presenting a Paper, a short explanatory statement may be made by the person upon the presentation of the Paper.

Now, if he invokes (3), which is to the effect that a short explanatory statement shall be made by the person presenting a Paper, where requested by the House or a Member upon the presentation.

Mr Speaker, if I am the one presenting the Paper, if I am desirous, I will give a short explanatory memorandum. Mr Speaker, if my Brother wants to invoke some of these Orders, we will take cover under Order 97(2). If I am not desirous— Mr Speaker, in any case, the Minister for Health is capable, able and desirous of offering the short explanatory memorandum.

So, let us allow him.

4.58 p.m.

Mr Second Deputy Speaker: Hon Dafeamekpor, your interpretation is a bit suspicious, but just allow the Hon Minister for Health, if he is so desirous— Hon Members, I am saying that because he said himself that he is so desirous, that is why I said that.

Hon Minister, please, give small explanation to—

Mr Annoh-Dompreh — rose —

Mr Second Deputy Speaker: Leader, I am yielding to your request. I am asking him to give a small explanation to it.

Mr Annoh-Dompreh: Mr Speaker, with respect, if I may. It is mandatory upon the request of a Member. Order 97(3).

Mr Second Deputy Speaker: Hon Majority Chief Whip, we are all on the same page. It is mandatory according to you, but he said he is desirous to do that, that is why I also said that.

Mr Akandoh: Mr Speaker, the Papers to be laid under (i), (ii) and (iii) are with respect to people holding diplomatic passports and service passports for their visas to be waived under the countries listed on the Order Paper.

I thank you for the opportunity.
[Hear! Hear!]

Mr Second Deputy Speaker: What about the items listed (iv), (v), (vi) and (vii)?

Mr Akandoh: Mr Speaker, the items listed (iv), (v), (vi) and (vii) are all part of these countries that are willing and ready to grant visa waivers.

Mr Second Deputy Speaker: Very well, so you can lay them now.

Mr Annoh-Dompreh: Mr Speaker, with respect, my Colleague tried to provide an omnibus explanation for all the Papers, but that is not correct. Mr Speaker, (vi) reads:

“Host Country Agreement for the Establishment of a Branch Office of AGRA in Accra, Ghana.”

How can he say this is about a bilateral agreement and visa waiver agreement? Mr Speaker, that is not tenable; he should proffer better reasons. That is wrong. Mr Speaker, I put it to him that he has failed to present the reasons.

Mr Second Deputy Speaker: Minority Leader, that is wrong, but the explanation satisfies me. [Laughter]

Mr Akandoh: Mr Speaker, what my Hon Colleague is drawing my attention to is being done as a result of ratification of what I have earlier stated of all these protocols. What I have said is giving birth to what he is raising.

Mr Second Deputy Speaker: You can read from the face of the Hon Minister that he is so happy that the Bill has been passed.

Yes, Hon Akandoh?

PAPERS

By the Minister for Health on behalf of the Minister for Foreign Affairs—

- (i) Bilateral Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the Commonwealth of Dominica for the waiver of Visa Requirements for Holders of Diplomatic, Service and Ordinary Passports.
- (ii) Bilateral Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the Republic of Colombia for the waiver of Visa Requirements for Holders of Diplomatic, Official and Service Passports.
- (iii) Bilateral Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and

the Government of the Republic of Mozambique for the waiver of Visa Requirements for Holders of Diplomatic and Service Passports.

(iv) Bilateral Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the Republic of Colombia for the waiver of Visa Requirements for Holders of Diplomatic, Official and Service Passports.

(v) Bilateral Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the Democratic Republic of São Tomé and Príncipe for the waiver of Visa Requirements for Holders of Diplomatic, Service and Ordinary Passports.

Referred to the Committee on Foreign Affairs and Regional Integration

(vi) Host Country Agreement for the Establishment of a Branch Office of AGRA in Accra, Ghana.

Referred to the Committee on Foreign Affairs and Regional Integration, and the Committee on Food, Agriculture and Cocoa Affairs

(vii) United Nations Treaty for the Prohibition of Nuclear Weapons, New York 2017.

Referred to the Committee on Foreign Affairs and Regional Integration—

Mr Annoh-Dompreh: Mr Speaker, with respect, the item numbered (vi) is a host agreement and it should go to Committee on Foreign Affairs and Regional Integration, same as the item listed (vii).

Mr Second Deputy Speaker: No, I am saying that it is going to the Committee on Foreign Affairs and Regional Integration together with the Committee on Food, Agriculture and Cocoa Affairs because AGRA deals with a bit of agriculture.

Mr Annoh-Dompreh: Mr Speaker, it is actually the host agreement and with respect, it should be going to the Committee on Foreign Affairs and Regional Integration instead.

Mr Second Deputy Speaker: What about the item listed (vii)?

Mr Annoh-Dompreh: Mr Speaker, at your pleasure, you may add the leadership of Committee on Food, Agriculture and Cocoa Affairs, but not the entire Committee.

Mr Second Deputy Speaker: Very well. So, with the item listed (vi), I will add the leadership of the Committee on Food, Agriculture and Cocoa Affairs to the Committee on Foreign Affairs and Regional Integration. And with the item listed (vii), I will add the Committee on Defence and Interior to the Committee on Foreign Affairs and Regional Integration to consider. I so direct.

Hon Members, I think we will constitute the House into a Joint Caucus which is very critical. So, Hon Members, indulge me to constitute the House into Joint Caucus, where we can exclude the media and all others.

Mr Nyindam —*rose*—

Mr Second Deputy Speaker: Yes, Hon Member, what did you want to say?

Mr Matthew Nyindam: Mr Speaker, I come under Order 97(1) and, with your indulgence, I would like to read, although the Papers have been laid:

“Whenever sufficient copies of a Paper have been received in the Office of the Clerk for distribution to Members, notice of the presentation of that Paper may be placed on the Order Paper and when the Speaker announces “Presentation of Papers,” the person laying the Paper shall rise and bow to the Chair and the Clerk shall read the title of the Paper and the Paper shall be considered to have been laid on the Table.”

As we speak now, Mr Speaker, we do not have copies of what has been laid.

Mr Second Deputy Speaker: Have you not been given a copy of the Papers?

Mr Nyindam: We have not been given.

Mr Second Deputy Speaker: Go through the screen.

Mr Nyindam: It is not on the screen, Mr Speaker.

Mr Second Deputy Speaker: Hon Member, it has just been laid, so do not worry, they would give you copies.

Hon Members, please, we would constitute the House into Joint Caucus.

5.09 p.m. — *[The House constituted into a Joint Caucus Meeting.]*

6.30 p.m. — *Sitting resumed*

Mr Second Deputy Speaker: Hon Members, the item numbered 5 on the Order Paper, Correction of *Votes and Proceedings* and the *Official Report* of Monday, 21st July, 2025.

VOTES AND PROCEEDINGS AND THE OFFICIAL REPORT

Hon Members page 1...41

[No correction was made to the Votes and Proceedings of Monday, 21st July, 2025]

Hon Members, I have in my hands the *Official Report* of Tuesday, 15th July, 2025 edition. Hon Members, any corrections?

[No correction was made to the Official Report of Tuesday, 15th July, 2025]

Yes, Leadership, any indication?

Mr Dafeamekpor: Mr Speaker, indeed yes. Mr Speaker, in the absence of any further Business, I pray that we bring today’s Proceedings to an end and come back tomorrow at 2.00 p.m. Mr Speaker, I thank you.

Mr Second Deputy Speaker: Very well. Hon Members, you are in my hands today. We started at 10.00 a.m. and it is 6.30 p.m. It means we have gone beyond the five hours. So, I thank all of you for your cooperation and the House stands adjourned till tomorrow 2 o'clock in the

afternoon, that is 14 hours Greenwich Mean Time. The House stands adjourned.

ADJOURNMENT

The House was adjourned at 6:30 p.m. till Wednesday, 23rd July, 2025, at 2.00 p.m.

